

LEGAL RESEARCH METHODOLOGY



GENERAL INTRODUCTION

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INTRODUCTION

Each profession has its own peculiar way of finding information relating to it.

It is the responsibility of a professional in a particular field to develop ways and skills necessary for finding information and storing it for use when the need arises.

The ability to find information is an essential quality that a professional needs to facilitate his work.

Quick thinking and easy recall may be natural gifts, but ability to trace and locate information through some well laid down procedures recognized by a profession, is an art which must be developed by every profession.

With the advent of the computer, finding information, storing and retrieving it has been made easier.

However, the computer is only a tool of doing what its commanded.

The profession must still design procedures and how such are to be organized.

For an academic, the ability to search for information and retrieve it must be learned and acquired.

Without this knowledge and skill, a researcher could find himself in a situation where he will have to wade through huge quantity of materials, which can be nerve-wrecking and time-consuming, and yet not able to find the needed information.

DEFINITION OF RESEARCH

In simple terms, it is a „systematic investigation towards increasing the sum of human knowledge“ and as a „process“ of identifying and investigating a „fact“ or a „problem“ with a view to acquiring an insight into it or finding an apt solution therefor.

Some people consider research as a movement, a movement from the known to the unknown. It is actually a voyage of discovery.

We all possess the vital instinct of inquisitiveness for, when the unknown confronts us, we wonder and our inquisitiveness makes us probe and attain full and fuller understanding of the unknown.

This inquisitiveness is the mother of all knowledge and the method, which man employs for obtaining the knowledge of whatever the unknown, can be termed as research.

Research is an academic activity which comprises defining and redefining problems, formulating hypothesis or suggested solutions; collecting, organizing and evaluating data; making deductions and reaching conclusions as well as carefully testing the conclusions to determine whether they fit the formulated hypothesis.

DEFINITION OF LEGAL RESEARCH

Legal research may be defined as „systematic“ finding of law on a particular point and making advancement in the science of law.

However, the finding of law is not so easy. It involves a systematic search of legal materials, statutory, subsidiary and judicial pronouncements.

For making advancement in the science of law, one needs to go into the „underlying

principles or reasons of the law”.

These activities warrant a systematic approach. An approach becomes systematic when a researcher follows scientific method.



Generally, law is influenced by the prevailing social values and ethos.

Most of the times, law also attempts to mould or change the existing social values and attitudes. Such a complex nature of law and its operation require systematic approach to the „understanding“ of „law“ and its „operational facets“.

A systematic investigation into these aspects of law helps in knowing the existing and emerging legislative policies, laws, their social relevance and efficacy, etc.

Legal research is a problem-solving process and the lawyer's task is classified into two categories:

1. When the lawyer needs to advise a client on a course of action, such as writing a will, drafting a contract, incorporating a document and drawing a mortgage.

In any of the above, the lawyer must be able to search for information relevant to the facts in issue. In these circumstances, the lawyer's work is that of a solicitor.

2. When a lawyer is representing a client in court. In this circumstances, the lawyer searches for information relevant to the case to be presented before the court for consideration. In this circumstance, the lawyer is doing a barrister's work.

In Uganda, there is no dichotomy between barrister's and solicitor's work.

OBJECTIVES OF RESEARCH

The purpose of research, thus, is to acquire knowledge or to know about „something“ in a scientific and systematic way.

Its purpose may, however, be to find solution to the identified problem.

The former is referred to as „basic“ or „pure“ or „fundamental“ research while the latter takes the label of „applied“ or „action“ research.

Fundamental research is mainly concerned with generalizations and with formulation of a theory (or re-confirmation of the existing theory).

Its main aim is to acquire knowledge for the sake of acquiring it.



Applied research, on the other hand, aims at finding or discovering solutions or answers to the identified „problem(s)“ or „question(s)“.

Obviously, every research study has its own goal(s) or objective(s). Nevertheless, „research objective“ of a given research study may fall under either of the following broad categories of „research objectives“:

1. To gain familiarity with a phenomenon or to achieve new insights into it.
2. To portray accurately the characteristics of a particular individual, situation or a group.
3. To determine the frequency with which something occurs or with which it is associated.
4. To test causal relationship between two or more than two facts or situations.
5. To „know“ and „understand“ a phenomenon with a view to formulating the problem precisely.
6. To „describe“ accurately a given phenomenon and to test hypotheses about relationships among its different dimensions.

MOTIVATION IN RESEARCH

An equally important question, namely, what makes a scholar to undertake research, deserves our attention.

A general response to the question, probably, would be that a person, who is curious to know something or more about something, undertakes a systematic study of that something to kill his curiosity.

His quest for knowing about, or acquiring knowledge of, „something“, plausibly motivates him to undertake research of that „something“.

However, there could be a couple of other „motivations“ for him to get indulged into research. They are:

1. Desire to earn a research degree along with its consequential benefits.
2. His „concern“ for hitherto „unsolved“ or „unexplored“ „problem“ and his keen desire to seek solution therefor, and be a proud recipient of that contribution.



3. Desire to acquire reputation and acclaim from his fellow men.
4. Desire to get intellectual joy of doing some „creative“ work.
5. Desire to render some service to society.

RESEARCH METHODS AND RESEARCH METHODOLOGY

The term „research methods“ refers to all those methods and techniques that are used by a researcher in conducting his research.

The term, thus, refers to the methods, techniques or tools employed by a researcher for collecting and processing of data, establishing the relationship between the data and unknown facts, and evaluating the accuracy of the results obtained.

Sometimes, it is used to designate the concepts and procedures employed in the analysis of data, howsoever collected, to arrive at conclusion.

In other words, „research methods“ are the „tools and techniques“ in a „tool box“ that can be used for collection of data (or for gathering evidence) and analysis thereof.

„Research methods“ therefore, can be put into the following three groups:

1. The methods which are concerned with the collection of data [when the data already available are not sufficient to arrive at the required solution].
2. The statistical techniques [which are used for establishing relationships between the data and the unknowns].
3. The methods which are used to evaluate the accuracy of the results obtained.

In the legal field, it is accomplished through special procedures of information gathering, storage and use.

It may include the collection of laws, administrative regulations, court practice and procedures, administrative rulings, treaties etc.

In some cases, it may include fact finding relevant to any episode, circumstance and actual fact situation.



The term „**research methodology**“, on the other hand, refers to a „way to systematically solve“ the research problem.

It may be understood as a „science of studying how research is done scientifically“.

It involves a study of various steps and methods that a researcher needs generally to adopt in his investigation of a research problem along with the logic behind them.

It is a study of not only of methods but also of explanation and justification for using certain research methods and of the methods themselves.

It includes in it the philosophy and practice of the whole research process. In other words, research methodology is a set of rules of procedures about the way of conducting research.

It includes in it not just a compilation of various research methods but also the rules for their application (in a given situation) and validity (for the research problem at hand).

A researcher, therefore, is required to know not only the research methods or techniques but also the methodology, as he needs to decide as well as to understand the relevancy and efficacy of the research methods in pursuing the research problem at hand.

He may be confronted with equally relevant and efficacious alternative research methods and techniques at each stage of his research study.

He, therefore, has to consciously resort to the research methods and techniques that are most appropriate to carry his investigation in a more systematic manner.

This becomes possible only when he is acquainted with the underlying assumptions and utility of various research methods or techniques available to him.

A study of research methodology has the following advantages:

1. It inculcates in a researcher the ability to formulate his research problem in an intelligent manner.
2. It inculcates in him objectivity in perceiving his research problem and seeking solutions therefor.



3. It equips him to carry out his research undertaking in an efficient manner and in a better way.
4. It enables him to take rational decisions at every step of his research.
5. It enables him to design appropriate research technique(s) and to use it (them) in an intelligent and efficient manner.
6. It enhances his ability to analyze and interpret data with reasonable objectivity and confidence.
7. It enhances ability of the researcher and/or others to evaluate research findings objectively and use the research results in a confident way.
8. It entails a good research.
9. It enables him to find a satisfactory way of acquiring new knowledge.

Importance of knowing the methodology of research or how research is done stems from the following considerations:

1. The knowledge of methodology provides good training specially to the new research worker and enables him to do better research. It helps him to develop disciplined thinking or „bent of mind“ to observe the field objectively.
2. Knowledge of how to do research will inculcate the ability to evaluate and use research results with reasonable confidence.
3. When one knows how research is done, then one may have the satisfaction of acquiring a new intellectual tool which can become a way of looking at the world and of judging every day experience. Accordingly, it enables us to make intelligent decisions concerning problems facing us in practical life at different points of time. Thus, the knowledge of research methodology provides tools to look at things objectively.

4. The knowledge of methodology helps the consumer of research results to evaluate them and enables him to take rational decisions.



TYPES OF RESEARCH METHODS

1. **Empirical Research:** This involves the collection of facts and data through interviews, questionnaires, etc. from target groups.

The facts and data are later analysed or experimented upon, from which results are obtained. It is also called field oriented method of research.

This method was introduced to legal research by researchers from pure-science-based courses, where information or facts are collected outside and analysed in laboratories.

2. **Doctrinal Research:** This means theorizing without considering the practical consequences. It is called a visualized research, imaginative research, unpractical research.

The researcher pays excessive attention to theory as opposed to practice.

Most legal research is of this kind. Legal researcher wade through volumes of books, statutes and cases after which they analyse their findings and make recommendations or suggestions.

This type of method is also called *a priori* research.

3. **Teleological Research:** This is where the researcher uses his experience to arrive at a definite finding.

For example, a retired president, minister or even a director can use his experience acquired during his tenure in office to write a project, article or a book.

TYPES OF RESEARCH

According to C R Kothari, the basic types of research are:

1. Descriptive and Analytical Research;
2. Applied and Fundamental Research;

3. Quantitative and Qualitative Research; and
4. Conceptual and Empirical Research.



1. Descriptive vs. Analytical Research

Descriptive research, as its name suggests, describes the state of affairs as it exists at present. It merely describes the phenomenon or situation under study and its characteristics.

It reports only what has happened or what is happening. It therefore does not go into the causes of the phenomenon or situation.

The methods commonly used in descriptive research are survey methods of all kinds, including comparative and co-relational methods, and fact-finding enquiries of different kinds.

Thus, descriptive research cannot be used for creating causal relationship between variables. In the context of law, the research is aimed at exploring what the existing law is on a given subject

While in analytical research, the researcher uses his facts or information already available and makes their analysis to make a critical evaluation of the material.

2. Applied vs. Fundamental Research

Applied research or action research aims at finding a solution for an immediate problem. Here the researcher sees his research in a practical context.

While in fundamental/pure or basic research, the researcher is mainly concerned with generalization and with the formulation of a theory.

He undertakes research only to derive some increased knowledge in a field of his inquiry. He is least bothered about its practical context or utility.

Research studies concerning human behavior carried on with a view to making generalizations about human behavior fall under fundamental or pure research.

But if the research (about human behavior) is carried out with a view to solving a problem (related to human behavior), it falls in the domain of applied or action research.

The central aim of applied research is to discover a solution for some pressing practical problem, while that of fundamental research is to find additional information about a phenomenon and thereby to add to the existing body of scientific knowledge.



A sociologist, for example, when working with a social problem to find solution therefor and proposes, through a systematic inquiry, a solution or suggests some measures to ameliorate the problem, his research takes the label of „applied“ or „action“ research.

But when he undertakes a study just to find out the „what“, „how“ of the social problem, his inquiry takes the nomenclature of „pure“ or „fundamental“ research.

However, the above-mentioned „distinguishing factor“ between the „applied“ and „fundamental“ research need not be conceived as a „line“ putting the two „across“ the „line“ forever or an „either- or“ dichotomy.

In fact, they are not mutually exclusive. There is a constant interplay between the two, each contributing to the other in many ways.

3. Quantitative vs. Qualitative Research

Quantitative research is based on the measurement of quantity or amount. It is applicable to a phenomenon that can be expressed in terms of quantity.

It is systematic scientific investigation of quantitative properties of a phenomenon and their inter-relation.

The objective of quantitative research is to develop and employ mathematical models, theories and hypotheses pertaining to the phenomenon under inquiry.

The process of measurement, thus, is central to quantitative research because it provides fundamental connection between empirical observation and mathematical expression of quantitative relationship.

This type of research is sometimes called Statistical Research.

In the context of law, it involves gathering of statistics on the working of the law.

Qualitative research, on the other hand, is concerned with qualitative phenomenon, i.e. phenomenon relating to or involving quality or kind.

For example, when a researcher is interested in investigating the reasons for, or motives behind, certain human behavior, say why people think or do certain things, or in investigating their attitudes



towards, or opinions about, a particular subject or institution, say adultery or judiciary, his research becomes qualitative research.

Unlike quantitative research, qualitative research relies on reason behind various aspects of behavior.

4. Conceptual vs. Empirical Research

Conceptual research is related to some abstract idea(s) or theory. It is generally used by philosophers and thinkers to develop new concepts or to re-interpret the existing ones.

On the other hand, empirical research relies on experience or observation alone, often without due regard for system or theory.

It is data-based research, coming up with conclusions that are capable of being verified by observation or experiment.

It is therefore also known as experimental research.

In empirical research, it is necessary to get facts firsthand, at their source.

In such a research, the researcher must first provide himself with a working hypothesis or guess as to the probable results. He then works to get enough facts (i.e. data) to prove or disprove his hypothesis.

IMPORTANCE (PURPOSE) OF LEGAL RESEARCH

Law, as mentioned earlier, does not operate in a vacuum. It operates in a complex „social setting“. It reflects social attitudes and behavior.

It also seeks to mould and control social attitudes and behavior of people to ensure that they follow the expected channel.

However, social values and attitudes, existing as well as expected, keep on changing. It makes the law to be dynamic and cope with the changing social ethos.

Further, ongoing scientific and technological developments add to these complexities by creating new complex human relationship that needs law to regulate.

In such situations, legal research, inter alia, becomes necessary:



1. for ascertainment of law on a given topic or subject;
2. to highlight ambiguities and inbuilt weaknesses of law;
3. to critically examine legal provisions, principles or doctrines with a view to see consistency, coherence and stability of law and its underlying policy;
4. to undertake social audit of law with a view to highlighting its pre-legislative „forces“ and post-legislative „impacts“; and
5. to make suggestions for improvements in, and development of, law.

MODELS OF LEGAL RESEARCH

Legal research, like any other research, invariably involves collection and analysis of facts and their interpretation to ascertain or refute existing information or add new information thereto.

Inquiry into a legal fact, thus, either supplements the existing theory/information or supplants it with new one.

However, a legal researcher, depending upon focal theme and research goals of his inquiry, resorts to research tools and techniques and follows a paradigm that differs from others.

A few prominent paradigms or models of legal research, in brief, along with their utility, are outlined here below:

i. **Evolutionary and Evaluative**

A legal research gets the label of „evolutionary model of legal research“ when a researcher endeavors to find out how a legal fact, rule, concept, an institution or the legal system itself come to be what it is today.

The researcher attempts to trace the origin and development of a legal fact, [such as

rule against self-incrimination or double jeopardy], or a legal institution, [like the institution of an ombudsman or a judicial institution, say the Supreme Court of Uganda].

Such legal research can also be undertaken even to trace the development of a given law, like the development of constitutional law of a country.

The legal researcher can do this in two ways:



1. He may prepare a calendar of the successive formal baptismal dates of the legal fact in question.
2. He may trace the evolution of a legal fact or an institution by locating various supportive and causal phenomena, events or factors that were responsible for shaping the growth of a legal fact or an institution under study.

Evaluative model aims at expounding the logical coherence of concepts, elements, facts and interests of legal phenomenon individually, of their relationship inter se and their relationship with the concepts, elements, facts and interests outside the legal system for determining and defining the terms and presuppositions used in law.

The research is to ascertain the nature, scope and source of law in order to explain what law is, and also to spell out several propositions used in law.

ii. **Identificatory and Impact Studies**

Almost every law, other than procedural law has certain „legislative goal(s)“ to attain, and „legislative targets“ to handle through „law“.

A legal researcher, through an identificatory legal research, seeks to ascertain the „beneficiaries“ of a particular law or legal provision.

The interest is to find out the persons (or group of persons) for whose benefit the identified law (or legal fact) is made to exist.

To be more precise, he seeks to answer the question-which are the parties expected or intended to be benefited by a given rule, concept, institution or the system of law.

Identification of the parties intended to be benefited by a particular law or legal fact help to ascertain the legislative intent or object of that law or legal fact and to seek and clarify the justification for its existence.

It also helps to ascertain the legal framework and strategy employed in it to help the

„intended“ beneficiaries. It further helps to ascertain whether the intended beneficiaries are actually being benefited or not.



In a way, an identificatory legal research serves to assess the utility of the law or a legal fact under inquiry.

Such a model of legal research, for example, can be successfully used by undertaking research into the law relating domestic violence, child abuse or harmful traditional practices.

Impact of law studies endeavor to assess effectiveness or actual result of an established or a newly conceived law, legal provision, rule or institution.

Here legal researcher gives emphasis not on contents of the substantive law under inquiry but on its ultimate impact on the society or its legislative target.

His focus is not merely on the law as is found in the Codes, Statutes, judicial pronouncements and treatises but on its operation or „law in action“.

He intends to study and understand the effects of the working of law and legal institutions on the life of the individuals and society at a particular time and place.

The focus of inquiry, thus, is the „law in action“ and on the behavioral and attitudinal changes of the people effected by law.

He intends to record and explain how a particular legal fact works within a given social setting.

The investigation, incidentally, involves identification of non-legal factors or forces that affect the legal fact(s) in bringing about the intended changes in the society and their interaction with legal facts.

Such an assessment of law helps to monitor the success or failure of a given law or a legal provision or an institution, to identify bottlenecks, if any, and to amend or replace it by other more apt law, a legal provision.

It is a preliminary step to law reform. It gives feedback to the policy-makers.

iii. **Projective and Predictive**

A legal researcher generally uses projective model of legal research when he wants to anticipate and highlight effects of a draft legislation or a proposed legal measure.



Such a legal research is mainly attitudinal, intended to anticipate the probable response in terms of rejection or acceptance of a proposed measure.

Its purpose is to identify the parties who stand for and against the proposed law or legal measure and to locate determinant variables and situations for peoples' apathy or sympathy.

Predictive legal studies are used when a legal researcher intends to anticipate and highlight possible misuse of the proposed law or legal measure.

Such a legal research helps the lawmakers to minimize or to do away with the possible undesirable consequences of the proposed measure.

Predictive legal studies are generally carried out by Law Commissions, Parliamentary Committees or Joint Select Committees, invariably, before a proposed legal measure takes formal shape and becomes operational.

iv. **Collative**

When a legal researcher prepares a digest of laws, statutory provisions, judicial pronouncements or annotated bibliography on a particular topic or subject, that research gets the label of collative legal research.

Here the legal researcher collects all the relevant materials, with or without its summary, on a given topic and arranges/classifies them in a logical manner.

Digests of cases and statutes, like Halsbury's Statutes of England and Yearly Digests published by well-known law publishers fall in this category of legal research.

v. **Historical**

In historical legal research, a legal researcher intends to trace historical antecedents of a legal fact. Tracing history of a particular legal fact becomes significant for its following attributes.

1. it becomes useful, rather warranted, when the present statute or statutory provision has raised meaningful queries and it becomes necessary to explore the circumstances in which the present position came out.



In such circumstances, it gives a significant clue to the reasons why it (the particular law or legal provision) was framed in the form in which now it appears. It helps to remove certain doubts about the legal fact.

2. it supplies the researcher the reasons that justify the present position.

It would also exhibit that a particular existing provision, fully justifiable at the time when it was introduced, is no longer so justifiable because the reasons and the circumstances that justified its inclusion are no longer valid or exist.

3. it discloses the alternatives, different than the currently adopted ones, which were considered and rejected by the lawmakers and reasons therefor.

In this way, it initiates or contributes in legal reforms.

4. history of a legal fact, when traced deeply and arranged logically, shows the gradual evolution of the law or legal fact on certain lines, and thereby of general trend of its change. It shows the way the legal fact is evolved.
5. historical background of law enables law-makers to know the principles used or followed by Legislature from home or abroad in earlier identical law(s) as very few pieces of legislation are original in the sense of being pure innovations of a skilled draftsman.

In majority of the cases, Legislature consults and adapts earlier statutes or makes use of principles laid down or proposed in decided cases.

6. historical background of law or a statutory provision helps judiciary (particularly in Common Law jurisdictions) in interpreting law in a more rational and pragmatic way as historical research helps it to know the historical and political spirit in which that particular law (or a legal provision) came into existence and for what reasons. Laws are not made in a vacuum. They are passed in order to meet some needs of society.

7. a law may have relevant international background when it is enacted to give effect to the treaty obligations accepted by the government towards other countries.



The practical importance of an understanding and knowledge of that wider political context is evidenced by the increasing willingness of the courts to take account of relevant international instruments when construing the legislation.

vi. **Comparative**

A comparative legal research carries significance as Legislators imitate each other and try to learn from each other's experience.

It is undeniable that comparative legal research serves as a good means for introducing new ideas into a legal system.

The adoption of the Scandinavian institution of the Ombudsman in many Common Law jurisdictions and the adoption in many jurisdictions of consumer protection laws reflecting the American approach are classic examples in point.

In most of these instances law reformers, academic lawyers and Law Commissions have conducted comparative study of foreign systems before initiating a new law or proposing amendments in the existing ones.

Invariably, every good piece of comparative approach to law not only gives useful ideas to Legislature but also suggests suitable solution to legal problems.

However, it may be emphasized that comparative law becomes legitimate only if the comparison is applied to laws of countries whose social conditions are substantially similar.

CURRENT TRENDS IN LEGAL RESEARCH

Legal research, depending upon its objectives and the nature of inquiry, may be mono-disciplinary or trans-disciplinary.

1. Mono-disciplinary Legal Research

Traditionally, legal scholars have been engaged in analyzing legal concepts, doctrines,

statutes, or statutory provisions in the light of judicial pronouncements.

Based on such an analysis, they have been coming up with some tentative explanations of law and principles deducible therefrom and from judicial pronouncements.



They predict future course of development of law, hinting at the problems that may likely arise in future and suggesting a way out.

Such a research obviously is confined to the discipline of „law“, as the researchers, treating law as a closed discipline, need not go beyond the discipline of law or look for material lying beyond „law“.

This type of legal research is characterized as „mono-disciplinary legal research“ as the discipline involved is only one, i.e. „law“.

All doctrinal legal researches obviously fall in this category.

However, mono-disciplinary legal research, in spite of its potentials to contribute in bringing clarity, consistency and certainty in law and initiating reforms in law, has its own limitations.

It is addressed to a limited audience - the members of the profession – judges and lawyers and it is meant to assist them in the discharge of their day-to-day professional tasks.

It does not fully reflect the social dimensions of law. Therefore, the feedback it supplies to the policy-makers is merely partial.

2. Trans-disciplinary Legal Research

It is an inquiry into a legal fact that transgresses the discipline of „law“ and touches upon disciplines „related“ to law.

Law does not operate in a vacuum. It operates in a complex social setting. It has certain roles to play in a society. Each legal rule, in ultimate analysis, intends to apply and govern a factual situation of life.

All disciplines that are connected with this factual situation of life, therefore, have nexus with

„law“.

History, philosophy, sociology, psychology, religion, to mention a few, are thus related with

„law“.

Law’s nexus and affinity with the disciplines have made some legal scholars to extend their range of investigation beyond „law“ and to enter into other „related“ disciplines, for bringing out the wider implications of legal rules and for recommending more meaningful policies and rules.



Such a legal research, takes the label of „trans-disciplinary legal research“ as the researcher transgresses the discipline of „law“ to see other dimensions of the legal fact under investigation.

Socio-legal research generally falls into the category of trans-disciplinary legal research.

Trans-disciplinary legal research may be quasi-disciplinary, multi-disciplinary, or inter-disciplinary.

i. *Quasi-disciplinary legal research*

This is a research undertaken by the same scholar of law in different perspectives that transgress the discipline of law.

For example, legal research undertaken by a scholar of law, well conversant with religious literature, delves into personal laws and highlights niceties of legal issues associated therewith.

ii. *Multi-disciplinary Legal Research*

This involves a study of a common problem by scholars of several disciplines, each studying it from his own specialized angle.

For example, scholars of law, sociology, or political science may individually study the issues pertaining to gender equality or an affirmative action.

iii. *Inter-disciplinary Legal Research*

This is a research endeavor undertaken jointly by scholars belonging to different disciplines.

This is the research done by a legal scholar in close association with scholars from other disciplines related with law, such as sociology, anthropology, political science, history, philosophy, psychology, and economics.

It is a sort of concerted or cooperative effort by several scholars belonging to

different disciplines to integrate their disciplinary insights, and to apply integrated insight to the study of legal problems.



RESEARCH AND SCIENTIFIC METHOD

Scientific method implies an objective, logical and systematic method, i.e.:

- a method free from personal bias or prejudice;
- a method to ascertain demonstrable qualities of a phenomenon capable of being verified;
- a method wherein the researcher is guided by the rules of logical reasoning;
- a method wherein the investigation proceeds in an orderly manner and a method that implies internal consistency.

RESEARCH PLANNING AND METHODOLOGY

- Introduction
- Research Plan
- Finding of Information
- The Use of the Library
- Selecting a Topic
- Methodology

INTRODUCTION

In its most simplistic form a legal research plan is a strategy for finding information on an identified topic.

Strategy is loosely defined as the planning or conducting of an operation.

Development of a strategy maximizes efficiency and accuracy through a systematic approach to a problem rather than reliance on the luck of the researcher.

There is no single correct form of strategy or plan; however, a systematic or methodical approach to the query, rather than a shot in the dark, requires a strategy.

Researchers may select from a variety of strategies. The strategy will vary depending on

- the purpose and nature of the research project



- how much the researcher knows about the subject
- the amount of time and money devoted to the project.

A Research Plan describes how you will conduct the research.

It contains information on what would be done in the research regarding the scope and the methods.

Generally, creating a research plan requires three steps:

1. Obtaining Preliminary Information About the Problem

How much time do I have for the assignment?

What final work product should I produce? A dissertation, memorandum, pleading, brief, or informal report?

Are there any limits on the research materials I am permitted to use? Use only authorized research tools.

Which jurisdiction's law applies? Federal or State?

Should I research persuasive authority? Understanding the scope of the assignment will help you focus your efforts.

Do I know any of the sources that are good for researching in this area of law? What background on the law or terms should I know as I begin my research?

Should I consult any written materials or individuals before beginning my research? Reviewing briefs or memoranda on the same or similar issue or consulting the "resident expert" can help your research efforts.

2. Writing out a Plan

Develop an initial issue statement and generate search terms -- a preliminary assessment of the problem that helps define the scope of your research.

Identifying research sources -- Determine which research sources are likely to have relevant information.



Decide which of the three categories of authority (mandatory primary authority, persuasive primary authority, and secondary authority), and then within each category which specific authorities, you should consult.

Begin with what you know, identify what you do not know, and determine the best way to fill in the blanks.

At a minimum, map out your search for primary mandatory authority.

Print vs Electronic sources -- Some sources can be accessed more easily in one format or the other.

3. **Working Effectively**

Keeping track: effective notetaking -- know where you have looked and where you need to look; needed for proper citations; demonstrate that you undertook comprehensive research to try to resolve the issues.

Keep a list of the source or database, the citation (topic and key numbers), the method of locating the source, a summary of relevant information, and any updating information.

Deciding when to stop -- you will know you have come full circle in your research when, after following a comprehensive research path through a variety of sources, the authorities you locate start to refer back to each other and the new sources you consult fail to reveal significant new information.

FINDING OF INFORMATION

In Legal research sources of information

include: Constitution

Statute

Case Law: Judicial Precedent and Stare Decisis

Books

Computer and Internet



Journals

Newspapers

Hansards

Radio/Television

s

International Materials: Treaties

In developing a research plan, a researcher needs to identify all the possible sources of information which the researcher intends to use.

This generally involves the following:

1. Use of the library
2. Critical reading
3. Hunting references
4. Recording relevant materials

However, how does one begin to find relevant information relating to the topic: There are three types of sources of law: primary, secondary and tertiary.

For a beginner, it is generally recommended that the following may be undertaken:

➤ **Consult a Secondary Source First**

Once the general legal terms are identified, the researcher will likely need to become more familiar with a specific area of law.

Most researchers find it helpful to start with a secondary source such as a legal encyclopedia, a treatise, or a legal periodical article before researching primary

authority.

Secondary sources summarize and interpret the law in a narrative format.

They also give useful background information and provide references to relevant primary sources.



One of the most useful secondary sources is a legal encyclopedia, which can be found in some non-law libraries.

Legal encyclopedias provide good overviews of many legal topics, with numerous references to primary law and other secondary materials.

Secondary sources will also provide the researcher with keywords and terms that may not otherwise occur to the researcher.

➤ **Accessing Print Legal Materials: Using the Indexes**

For the researcher with limited experience in legal materials, it can be comforting to know that using law books is not very different from using other kinds of reference books.

Most law books have subject indexes, tables of contents, and tables of cases and statutes, as well as other helpful information.

Whether looking for statutes, cases, or commentary on a particular topic, the index is usually the best place to begin research.

In most indexes, both commonplace words as well as legal terms are used; often a subject is indexed under several different words or phrases.

As an example: statutes of limitation may also be referred to as limitations of actions.

Secondary sources will also provide the researcher with keywords and terms that may not otherwise occur to the researcher.

For the purposes of identifying alternative terms, dictionaries and thesauri (particularly legal dictionaries and thesauri) may be consulted.

➤ **Print vs. Online Resources**

A vast amount of legal information is available for free online.

In addition to government Web sites, there are commercially published online resources, such as West's FindLaw and Lexis's Communities, as well as online resources created by academic institutions.



Online legal research can be daunting, however, depending on the researcher's familiarity with legal terminology and understanding of the organization of legal authority.

As with all online research, the adage "garbage in, garbage out" is true when someone attempts to retrieve relevant information without a clear understanding of the legal concepts involved.

The initial challenge, then, is in deciding whether it is more efficient to start with an online search, or whether it makes sense to start with the books.

When to use Print Sources

When you are searching material not available online -- such as treatises or legal periodicals. When you need general information on a topic about which you are unfamiliar.

When your search terms are general or the subject of your research involves broad concepts. When you are conducting statutory or regulatory research.

When you need to read authorities located through other means.

When to use Electronic Sources

When the material you need is not available in print.

When you have unique search terms or are searching for proper names. When you need to update your research.

When you Can't Find Anything

Make sure you understand the problem: Did you note all the factual information you need and do you understand the assignment correctly?

Rethink your search terms: Have you expanded the breadth and depth of your search terms? Think of other ways to approach the problem and the applicable legal theories.

Go back to secondary sources: The material on the topic might be scattered through many digest topics or statutory sections so that it is difficult to locate without secondary sources



that compile the relevant information. Are you looking for the wrong type of authority? Is it a case of first impression?

When You Find an Overwhelming Amount of Material

Make sure you understand the problem.

Rethink search terms to narrow your approach. If you did word search, try subject search to focus on relevant authority.

Consult secondary sources. They will identify key authorities and limit the scope of the information.

If you've located only secondary authority or primary persuasive authority, you might want to refocus on primary mandatory authority from the controlling jurisdiction.

Narrow the legal theories you are considering.

USING THE LIBRARY

1. Author/Title Catalogue

An alphabetical listing of all the books and related materials in the library according to their authors and or titles. The location of the books are given in that library.

2. Subject Catalogue

Alphabetical listing of all the subjects covered by the books and related materials in the library.

Under each subject heading, books, etc on that subject are listed.

See Gasiokwu, M.U. *Legal Research and Methodology* (Jos: Fab Anieh Nigeria Limited, 1993), pp. 22-27

SELECTING A TOPIC

A good research starts with the selection of a researchable topic. What is a researchable topic?

The ability to develop a good research topic is an important skill.



An instructor may assign you a specific topic, but most often instructors require you to select your own topic of interest.

When deciding on a topic, there are a few things that you will need to do:

1. Brainstorm for ideas
2. Choose a topic that will enable you to read and understand the literature
3. Ensure that the topic is manageable and that material is available
4. Make a list of key words
5. Be flexible
6. Define your topic as a focused research question
7. Research and read more about your topic
8. Formulate a thesis statement

Be aware that selecting a good topic may not be easy.

It must be narrow and focused enough to be interesting, yet broad enough to find adequate information.

Before selecting your topic, ensure you know what your final project should look like. Each class or instructor will likely require a different format or style of research project.

Use the steps below to guide you through the process of selecting a research topic.

1. BRAINSTORM FOR IDEAS

Choose a topic that interests you. Use the following questions to help generate topic ideas:

- Do you have a strong opinion on a current legal, social or political controversy

- Did you read or see a news story recently that has piqued your interest or made you angry or anxious?
- Do you have a personal issue, problem or interest that you would like to know more about?



- Do you have a research paper due for a class this semester?
- Is there an aspect of a class that you are interested in learning more about?

Be aware of overused ideas when deciding a topic unless you feel you have a unique approach to the topic.

Ask the instructor for ideas if you feel you are stuck or need additional guidance.

2. READ GENERAL BACKGROUND INFORMATION

Read a general encyclopedia article on the top two or three topics you are considering.

Reading a broad summary enables you to get an overview of the topic and see how your idea relates to broader, narrower, and related issues.

It also provides a great source for finding words commonly used to describe the topic.

These keywords may be very useful to your later research. If you cannot find an article on your topic, try using broader terms and ask for help from a librarian.

Use periodical indexes to scan current magazine, journal or newspaper articles on your topic. Ask a librarian if they can help you to browse articles on your topics of interest.

Use Web search engines. Google and Bing are currently considered to be two of the best search engines to find web sites on the topic.

3. FOCUS ON YOUR TOPIC

Keep it manageable

A topic will be very difficult to research if it is too broad or narrow.

One way to narrow a broad topic such as “the environment” is to limit your topic. Some common ways to limit a topic are:

➤ by geographical area

Example: What environmental legal issues are most important in the

Eastern Uganda by culture



Example: How does the protection of environment fit into the muganda view? by time frame:

Example: What are the most prominent environmental legal issues of the last 10 years? by discipline

Example: How does protection of environment affect business practices today? by population group

Example: What are the legal effects of air pollution on senior citizens?

Remember that a topic may be too difficult to research if it is too:

- a. locally confined - Topics of this specific may only be covered in these (local) newspapers, if at all.

Example: What sources of pollution affect the Makindye Division water supply?

- a. recent - If a topic is quite recent, books or journal articles may not be available, but newspaper or magazine articles may. Also, Web sites related to the topic may or may not be available.
- b. broadly interdisciplinary - You could be overwhelmed with superficial information.

Example: How can the environment contribute to the culture, politics and society of the Western people?

popular - You will only find very popular articles about some topics such as sports figures and high-profile celebrities and musicians.

If you have any difficulties or questions focusing on your topic, discuss the topic with your instructor, or with a librarian.

4. MAKE A LIST OF USEFUL KEYWORDS

Keep track of the words that are used to describe your topic.

- Look for words that best describe your topic.



- Look for them when reading encyclopedia articles and background and general information
- Find broader and narrower terms, synonyms, key concepts for key words to widen your search capabilities
- Make note of these words and use them later when searching databases and catalogs

5. BE FLEXIBLE

It is common to modify your topic during the research process. You can never be sure of what you may find.

You may find too much and need to narrow your focus, or too little and need to broaden your focus. This is a normal part of the research process.

When researching, you may not wish to change your topic, but you may decide that some other aspect of the topic is more interesting or manageable.

Keep in mind the assigned length of the research paper, project, bibliography or other research assignment.

Be aware of the depth of coverage needed and the due date.

These important factors may help you decide how much and when you will modify your topic.

Your instructor will probably provide specific requirements, if not the table below may provide a rough guide:

6. DEFINE YOUR TOPIC AS A FOCUSED RESEARCH QUESTION

You will often begin with a word, develop a more focused interest in an aspect of something relating to that word, then begin to have questions about the topic.

- For example:

Ideas = Roger O'Keefe on Universal Jurisdiction



Research Question = How has Roger O'Keefe opinion influenced States on Universal Jurisdiction?

Focused Research Question = Which legal principles used by Roger O'Keefe on universal jurisdiction are common in various legal systems?

7. RESEARCH AND READ MORE ABOUT YOUR TOPIC

Use the key words you have gathered to research in the catalog, article databases, and Internet search engines. Find more information to help you answer your research question.

You will need to do some research and reading before you select your final topic. Can you find enough information to answer your research question?

Remember, selecting a topic is an important and complex part of the research process.

8. FORMULATE A THESIS STATEMENT

Write your topic as a thesis statement. This may be the answer to your research question and/or a way to clearly state the purpose of your research.

Your thesis statement will usually be one or two sentences that states precisely what is to be answered, proven, or what you will inform your audience about your topic.

The development of a thesis assumes there is sufficient evidence to support the thesis statement.

For example, a thesis statement could be: Roger O'Keefe's universal jurisdiction opened a new era in the prosecution of international crimes by States. His work has influenced contemporary approach to addressing impunity.

The title of your paper may not be exactly the same as your research question or

your thesis statement, but the title should clearly convey the focus, purpose and meaning of your research.

For example, a title could be: Universal Jurisdiction: Clarifying the Basic Concepts.

Remember to follow any specific instructions from your instructor.



METHODOLOGY

Methodology connotes how to systematically solve a problem.

In typical doctrinal legal research, it encompasses identifying and solving the legal issues in question or at stake.

Legal issues obviously arise from factual situations, hence understanding the factual situations is necessary.

Initial Steps

Conducting a thorough reference interview will allow you to more effectively identify the legal resources that may provide answers to the researcher's questions.

The first steps in answering a legal research question are:

1. to identify the legal issues by conducting a thorough reference interview and by using the TARP method; and
2. to identify the legal resources the researcher should consult, which includes secondary sources and indexes in the print collection as well as relevant online resources.

The following are steps to be taken in addressing those legal issues:

1. **Gathering of facts:**

This may involve conducting a thorough reference interview to allow for more effective identification of legal resources necessary to provide answers to the user's questions.

This may be from primary and secondary sources such as people including experts, tangible evidence and secondary documents such as books, periodicals and reports.

2. **Analysis of the Gathered Facts**

This is done to determine the legal issues raised by the gathered facts.

3. Identifying the Legal Issues

After the facts is established, the different legal issues requiring address would become clear.

4. Organizing/Arranging the Legal Issues



This is putting the identified legal issues in logical order to enable flow of argument and internal consistency.

5. Researching the Law

This involves locating the necessary applicable legal sources controlling the issues requiring address.

Researching the law involves:

- i. Finding the Law
- ii. Reading the Law and
- iii. Updating the Law

Finding the Law: The researcher should first locate mandatory primary authorities, persuasive primary authorities and secondary authorities.

The techniques of finding the law may be done using any of the three approaches:

- a. Descriptive Word or Fact Approach
- b. Known Authority Approach
- c. Known Topic Approach

Reading the Law: This is done to establish the significance of the law and its applicability to the issues at hand (internal evaluation).

Updating the Law: This is done to ascertain the continued validity and applicability of the identified laws/cases.

This may involve reading the most recent government gazettes, law reports and law reviews, and recent secondary materials.

RESEARCH ETHICS

- Introduction
- Why Research Ethics
- Ethical Issues
- Unethical Research Activities

INTRODUCTION

When most people think of ethics, they think of rules for distinguishing between right and wrong, such as: the Golden Rule ("Do unto others as you would have them do unto you");

a code of professional conduct like the Hippocratic Oath ("First of all, do no harm"); a religious creed like the Ten Commandments ("Thou Shalt not kill..."); or

a wise aphorisms like the sayings of Confucius.

This is the most common way of defining "ethics": norms for conduct that distinguish between acceptable and unacceptable behavior.

Most people learn ethical norms at home, at school, in religious institutions, or in other social settings.

Although most people acquire their sense of right and wrong during childhood, moral development occurs throughout life and human beings pass through different stages of growth as they mature.

Ethical norms are so ubiquitous that one might be tempted to regard them as simple commonsense.

On the other hand, if morality were nothing more than commonsense, then why are there so many ethical disputes and issues in our society?

One plausible explanation of these disagreements is that all people recognize some common ethical norms but interpret, apply, and balance them in different ways in light of their own values and life experiences.



E.g. two people could agree that murder is wrong but disagree about the morality of abortion because they have different understandings of what it means to be a human being.

Most societies also have legal rules that govern behavior, but ethical norms tend to be broader and more informal than laws.

Although most societies use laws to enforce widely accepted moral standards and ethical and legal rules use similar concepts, ethics and law are not the same.

An action may be legal but unethical or illegal but ethical.

We can also use ethical concepts and principles to criticize, evaluate, propose, or interpret laws. Indeed, in the last century, many social reformers have urged citizens to disobey laws they regarded as immoral or unjust laws.

Peaceful civil disobedience is an ethical way of protesting laws or expressing political viewpoints.

Another way of defining 'ethics' focuses on the disciplines that study standards of conduct, such as philosophy, theology, law, psychology, or sociology.

For example, a "medical ethicist" is someone who studies ethical standards in medicine.

One may also define ethics as a method, procedure, or perspective for deciding how to act and for analyzing complex problems and issues.

For instance, in considering a complex issue like global warming, one may take an economic, ecological, political, or ethical perspective on the problem.

While an economist might examine the cost and benefits of various policies related to global warming, an environmental ethicist could examine the ethical values and principles at stake.

Many different disciplines, institutions, and professions have standards for

behavior that suit their particular aims and goals.

These standards also help members of the discipline to coordinate their actions or activities and to establish the public's trust of the discipline.

For instance, ethical standards govern conduct in medicine, law, engineering, and business.



Ethical norms also serve the aims or goals of research and apply to people who conduct scientific research or other scholarly or creative activities.

Why Research Ethics is Important

There are several reasons why it is important to adhere to ethical norms in research.

1. Norms promote the aims of research, such as knowledge, truth, and avoidance of error.

For example, prohibitions against fabricating, falsifying, or misrepresenting research data promote the truth and minimize error.

2. Since research often involves a great deal of cooperation and coordination among many different people in different disciplines and institutions, ethical standards promote the values that are essential to collaborative work, such as trust, accountability, mutual respect, and fairness.

For example, many ethical norms in research, such as guidelines for authorship, copyright and patenting policies, data sharing policies, and confidentiality rules in peer review, are designed to protect intellectual property interests while encouraging collaboration.

Most researchers want to receive credit for their contributions and do not want to have their ideas stolen or disclosed prematurely.

3. Many of the ethical norms help to ensure that researchers can be held accountable to the public. For instance, where the research is funded by public money can be held accountable to the public.
4. Ethical norms in research also help to build public support for research. People are more likely to fund a research project if they can trust the quality and integrity of research.

5. Many of the norms of research promote a variety of other important moral and social values, such as social responsibility, human rights, animal welfare, compliance with the law, and public health and safety.

Ethical lapses in research can significantly harm human and animal subjects, students, and the public.

For example:



a researcher who fabricates data in a clinical trial may harm or even kill patients, and

a researcher who fails to abide by regulations and guidelines relating to radiation or biological safety may jeopardize his health and safety or the health and safety of staff and students.

Codes and Policies for Research Ethics

Given the importance of ethics for the conduct of research, it should come as no surprise that many different professional associations, government agencies, and universities have adopted specific codes, rules, and policies relating to research ethics.

The following is a rough and general summary of some ethical principles that various codes address:

1. Honesty

Strive for honesty in all scientific communications. Honestly report data, results, methods and procedures, and publication status.

Do not fabricate, falsify, or misrepresent data.

Do not deceive colleagues, research sponsors, or the public.

2. Objectivity

Strive to avoid bias in experimental design, data analysis, data interpretation, peer review, personnel decisions, grant writing, expert testimony, and other aspects of research where objectivity is expected or required.

Avoid or minimize bias or self-deception. Disclose personal or financial interests that may affect research.

3. Integrity

Keep your promises and agreements; act with sincerity; strive for consistency of thought and action.



4. Carefulness

Avoid careless errors and negligence; carefully and critically examine your own work and the work of your peers.

Keep good records of research activities, such as data collection, research design, and correspondence with agencies or journals.

5. Openness

Share data, results, ideas, tools, resources. Be open to criticism and new ideas.

6. Respect for Intellectual Property

Honour patents, copyrights, and other forms of intellectual property. Do not use unpublished data, methods, or results without permission.

Give proper acknowledgement or credit for all contributions to research. Never plagiarize.

Plagiarism of others' text, material, ideas and research results is unacceptable and constitutes a serious breach of ethical standards.

A plagiarist undermines not only his or her own reputation as a researcher, but also the credibility of the research.

7. Confidentiality

Protect confidential communications, such as papers or grants submitted for publication, personnel records, trade or military secrets, and patient records.

Research subjects are entitled to a guarantee that all information they provide about their private lives will be treated confidentially.

Researchers must prevent the use and dissemination of information that could

harm individual research subjects.

Research material must usually be anonymised, and strict requirements must apply for how lists of names or other information that would make it possible to identify individuals are stored and destroyed.



8. Responsible Publication

Publish in order to advance research and scholarship, not to advance just your own career. Avoid wasteful and duplicative publication.

9. Responsible Mentoring

Help to educate, mentor, and advise students. Promote their welfare and allow them to make their own decisions.

10. Respect for Colleagues

Respect your colleagues and treat them fairly.

11. Social Responsibility

Strive to promote social good and prevent or mitigate social harms through research, public education, and advocacy.

12. Non-Discrimination

Avoid discrimination against colleagues or students on the basis of sex, race, ethnicity, or other factors not related to scientific competence and integrity.

13. Competence

Maintain and improve your own professional competence and expertise through lifelong education and learning; take steps to promote competence in law as a whole.

14. Legality

Know and obey relevant laws and institutional and governmental policies.

15. Human Subjects Protection



When conducting research on human subjects, minimize harms and risks and maximize benefits; respect human dignity, privacy, and autonomy; take special precautions with vulnerable populations; and strive to distribute the benefits and burdens of research fairly.

Respect for privacy aims at protecting individuals against unwanted interference and exposure.

It applies not only to emotional issues, but also to questions that involve sickness and health, political and religious opinions, and sexual orientation.

Researchers should be especially compassionate when they ask questions that involve intimate issues and they should avoid placing informants under pressure.

What is perceived as sensitive information can vary from one individual or group to the next.

16. Follow Informed-Consent Rules

When done properly, the consent process ensures that individuals are voluntarily participating in the research with full knowledge of relevant risks and benefits.

In many instances you will be expected to have subjects indicate an awareness of specific risks involved in your study by completing an "Informed Consent."

17. Respect for the values and motives of others

Researchers must show respect for the values and views of research subjects, even if they differ from those generally accepted by society at large.

Researchers should not ascribe irrational or unworthy motives to anyone without providing convincing arguments for doing so.

Research is often concerned with the behaviour and values of minorities, e.g. religious groups, ethnic minorities, youth groups or political subcultures.

Researchers are under an obligation to take subjects' self-image seriously, and to avoid descriptions that diminish their legitimate rights



UNETHICAL RESEARCH ACTIVITIES

Publishing the same paper in two different journals without telling the editors

Submitting the same paper to different journals without telling the editors

Not informing a collaborator of your intent to file a patent in order to make sure that you are the sole inventor

Including a colleague as an author on a paper in return for a favour even though the colleague did not make a serious contribution to the paper

Discussing with your colleagues confidential data from a paper that you are reviewing for a journal

Using data, ideas, or methods you learn about while reviewing a grant or a papers without permission

Using an inappropriate statistical technique in order to enhance the significance of your research

Bypassing the peer review process and announcing your results through a press conference without giving peers adequate information to review your work

Conducting a review of the literature that fails to acknowledge the contributions of other people in the field or relevant prior work

Stretching the truth on a grant application in order to convince reviewers that your project will make a significant contribution to the field

Stretching the truth on a job application or curriculum vita

Giving the same research project to two graduate students in order to see who can do it the fastest

Overworking, neglecting, or exploiting graduate or post-doctoral

students Failing to keep good research records

Failing to maintain research data for a reasonable period of time



Making derogatory comments and personal attacks in your review of author's

submission Promising a student a better grade for sexual favours

Using a racist epithet

Not reporting an adverse event in a human research

experiment Wasting animals in research

Exposing students and staff to biological risks in violation of your institution's

biosafety rules Sabotaging someone's work

Stealing supplies, books, or data

Rigging an experiment so you know how it will turn out

Making unauthorized copies of data, papers, or computer programs

EXERCISES

Identify the Ethical Issues Involve

Case 1:

The research protocol for a study of a drug on hypertension requires the administration of the drug at different doses to 50 laboratory mice, with chemical and behavioral tests to determine toxic effects. Tom has almost finished the experiment for Dr. Q. He has only 5 mice left to test. However, he really wants to finish his work in time to go to Florida on spring break with his friends, who are leaving tonight. He has injected the drug in all 50 mice but has not completed all of the tests. He therefore decides to extrapolate from the 45 completed results to produce the 5 additional results.

Response to Case 1:

Many research ethics policies would hold that Tom has acted unethically by

fabricating data. Actions that nearly all researchers classify as unethical are viewed as misconduct. It is important to remember, however, that misconduct occurs only when researchers intend to deceive: honest errors related to sloppiness, poor record keeping, miscalculations, bias, self-



deception, and even negligence do not constitute misconduct. Also, reasonable disagreements about research methods, procedures, and interpretations do not constitute research misconduct.

Case 2:

Dr. T has just discovered a mathematical error in his paper that has been accepted for publication in a journal. The error does not affect the overall results of his research, but it is potentially misleading. The journal has just gone to press, so it is too late to catch the error before it appears in print. In order to avoid embarrassment, Dr. T decides to ignore the error.

Response to Case 2:

Dr. T's error is not misconduct nor is his decision to take no action to correct the error. Most researchers, as well as many different policies and codes would say that Dr. T should tell the journal (and any coauthors) about the error and consider publishing a correction or errata.

Failing to publish a correction would be unethical because it would violate norms relating to honesty and objectivity in research.

Case 3:

Dr. Wexford is the principal investigator of a large, epidemiological study on the health of 10,000 agricultural workers. She has an impressive dataset that includes information on demographics, environmental exposures, diet, genetics, and various disease outcomes such as cancer and Parkinson's disease (PD). She has just published a paper on the relationship between pesticide exposure and PD in a prestigious journal. She is planning to publish many other papers from her dataset. She receives a request from another research team that wants access to her complete dataset. They are interested in examining the relationship between pesticide exposures and skin cancer. Dr. Wexford was planning to conduct a study

on this topic.

Response to Case 3:

Dr. Wexford faces a difficult choice. On the one hand, the ethical norm of openness obliges her to share data with the other research team. Her funding agency may also have rules that obligate her to share data. On the other hand, if she shares data with the other team, they may



publish results that she was planning to publish, thus depriving her (and her team) of recognition and priority. It seems that there are good arguments on both sides of this issue and Dr. Wexford needs to take some time to think about what she should do. One possible option is to share data, provided that the investigators sign a data use agreement. The agreement could define allowable uses of the data, publication plans, authorship, etc. Another option would be to offer to collaborate with the researchers.

RETRIEVAL OF SOURCE MATERIALS

- Classifications of Legal Materials
- State of Law in Uganda
- Rules of Case Citation
- Finding and Updating Case Law

INTRODUCTION

Documents are graded or graduated according to their importance, source or authority

In courts, documents are to be cited in the order of their classification with regard to their relevance, importance, source and authority.

One term used to describe the rules that govern conduct in society is “legal authority”.

Rules, however, are only one type of legal authority and some types of legal authority are more authoritative than others.

To understand how legal authority are categorized, one needs to differentiate “primary” authority from “secondary” authority and “mandatory” authority from “persuasive” authority.

This determine the weight or authoritative value a legal authority carries.

CLASSIFICATION OF LEGAL MATERIALS (TYPES AND WEIGHT OF AUTHORITY)

Legal authorities are classified into primary and secondary.

1. Primary Authority

Is the term used to describe rules of law. Primary legal authorities are authorized statements of law issued by governmental bodies.

This include constitution, legislations, courts opinions, regulations and rulings of administrative agencies and other similar documents that carry the force of law.

They can either be *mandatory* (binding) or *persuasive* (non-binding).

Ascertaining what constitute mandatory authority requires a knowledge of which law-making bodies issue legal authority for a particular jurisdiction.

Mandatory statutory authority must be followed (*stare decisis*).

Persuasive primary authority can include court decisions of other jurisdictions which do not have to be followed but which may be used as examples of good reasoning.

This can be important if mandatory authority does not exist in a particular jurisdiction or if the researcher wishes to look for arguments as to why existing precedents should be changed.

The sources may be subject to changes over time requiring supplementation and updating.

2. Secondary Authority

Secondary authority furnish the information derived from primary authority. They are the writing of legal scholars, describing, interpreting, analyzing, summarizing and criticizing the law.

These sources organize the information in a systematic manner and in a planned way.

They include textbooks, treatises, commentaries on statutes, abstracts, bibliographies, dictionaries, encyclopedias, indexes, reviews, and thesauri.

Textbooks, legal treatises, and commentaries on statutes constitute significant secondary authority of legal research.



Textbooks and legal treatises offer a researcher proper idea of the subject and enable him to find several other useful sources of information on the topic of his research.

They also help him in comprehending basic principles of, and judicial statements on the topic under inquiry.

Abstracts are brief statements of the contents of research articles published in periodicals and/or anthologies, without appraisal.

Abstracts provide a simplified key to find relevant studies from the vast literature on the subject.

Bibliographies list books and related materials on a particular subject. They contain the author's name, title, place of publication, publisher and the year of publication.

An annotated bibliography provides a brief analysis of the contents.

Dictionary contains an alphabetical listing of words with their meaning, spelling, pronunciation, derivation and grammatical usage.

However, with the growth of knowledge, it has not been possible for general language dictionaries to keep up with technical terms developed in the various fields. So the need for subject specific dictionaries arose.

A legal researcher, therefore, can find a couple of legal dictionaries of worth consulting. The most frequently referred to, and widely used, is Black's Law Dictionary.

Encyclopedia is a book of information in the form of condensed articles on every subject. It furnishes greater details (of the subjects dealt thereunder) than a dictionary.

It provides meaning and historical background of concepts, important theories, names and references of major works.

Encyclopedia is thus the treasure house of knowledge on various subjects, including law.

Indexes are alphabetical listing of subjects and/or authors of the literature included therein.

Index“ is a detailed list of names, terms, subjects, places or other significant items in a complete work with exact page or other reference to material included in the work.



Index, thus, helps to quickly recall or retrieve most relevant information and thereby to establish a contact between producer of idea or information (i.e. author) and consumer of information (i.e. reader) through organizer of information (i.e. indexer/librarian).

It not only helps the reader to locate the required information immediately but also facilitates the identification or selection of the desired documents and provides comprehensive overview of the subject.

A **review** is an integrated and organized discussion of the literature pertaining to a well-defined subject. It usually covers a limited period of time.

A **thesaurus** is a book of words grouped by ideas. Its purpose is to help identify synonymous and find the exact word.

Roget's Thesaurus accomplishes this task for the English language. With an ever-increasing list of technical words.

Thesauri are also available for many disciplines, including law. These are compilations of the vocabulary used to identify concepts in the literature within a given area.

The importance of classifying documents into primary and secondary is to guide a researcher in citing such documents.

A researcher should cite authorities in statutes and case laws before citing opinions of legal experts expressed in textbooks, commentaries and journals.

Statutes and case laws rank *pari passu* in authority or weight. Any of them can be cited first. In practice, many cases are cited to illustrate, explain or interpret statutes.

THE STATE OF LAW IN UGANDA

With the increase in social, economic and political activities in Uganda, there has been an ever increasing need to enact new laws.

Some of the new laws have directly been derived from the Constitution as the supreme law of the country from which any inconsistent law is null and void to the extent of inconsistency.

Section 14(2) of the Judicature Act states that the jurisdiction of the High Court shall be exercised in conformity with written law.



Any person who seeks to resolve a legal problem must consider the constitutional provisions first and then the provision of any other written law on the subject.

The researcher can consider the provisions of subsidiary legislation and the provisions of equity, common law and customary law.

The laws in Uganda are found in volumes which are generally referred to as the Laws of Uganda 2000.

The Acts of Parliament are bound in 13 Red volumes.

The different Acts of Parliament appear in these volumes as chapters for example the Judicature Act appears as Chapter 13 Laws of Uganda.

Each of the Chapter of the Laws of Uganda appears in a sequence in the volumes depending on the Chapter number.

A researcher who needs to ascertain the location of an Act of Parliament within the volumes only needs to check at the back of any of the Red volumes within the index.

Acts of Parliament sometimes contain provisions for the responsible minister to formulate rules or regulations to operationalize certain provisions within the Act.

The rules or regulations formulated under such a power are referred to as statutory instrument. These instruments are also organized in volumes which run from volume 14 to volume 28.

Any researcher who seeks to research on a particular instrument has to refer to volume 28 which has an index of all statutory instruments made under the different Acts of Parliament.

RULES OF CASE CITATION

Case citation is a system used in many countries to identify past court case decisions, either in series of books called reporters or law reports, or in a "neutral" style that

identifies a decision regardless of where it is reported.

Case citations are formatted differently in different jurisdictions, but generally contain the same key information



Where cases are published in paper format, the citation usually contains the following information:

- i. Report title
- ii. Year of Decision (or Report)
- iii. Volume Number
- iv. Page Number

How To Find a Case

A number of different strategies may be used depending on information you have.

1. A case can most easily be found by its name and reference to its location in the law reports.

Taken together, these provide a means of identification as unique as a fingerprint.

The name of any case in English law is normally based upon the parties involved e.g. *Mesher v. Mesher* or *R v. Shivpuri*

The case reference is more properly called its **citation**

The most common form of citation of any case will be made up of the following elements:

YEAR **VOLUME (if any)****REPORT**
PAGE [1989] 2 **QB** 123

This tells that the case is to be found in volume 2 of the Queen's Bench Law Reports for 1989, beginning at page 123.

The style of citing cases is, as with journal citations, rigidly adhered to.

FINDING AND UPDATING CASE LAW

Researching Old Case Law

Case law reports before

1865

From 1272 to 1535, the Year Books reported the law in legal French. They are rarely cited in present-day courts.

Modern reprints with English translations alongside the original were made during the 19th and 20th centuries, in the Rolls Series, and in volumes published by the Seldon Society and the Ames Foundation.

Between 1571 and 1865 more than 500 different publications containing law reports were printed under the name of the person who wrote the reports. They are now known as the nominate reports.

By the mid 18th century law reporting began to be standardised, court reporters were authorised, and there was demand for reports to be published quickly.

A century later, lawyers and government attempted to bring legal publishing under control by establishing the Incorporated Council of Law Reporting (ICLR). The ICLR began to publish the Law Reports from 1865. These reports were intended to be authoritative, inexpensive and rapidly available.

The Law Reports

The Law Reports began in 1865, and are the most authoritative reports of cases in the UK.

They include the most important judgments from the House of Lords and Privy Council; the Court of Appeal - Criminal and Civil Divisions, the Chancery Division, Family Division, and Queen's Bench Division; the Employment Appeal Tribunal; and the European Courts of Justice

The current series titles of the Law Reports are: Appeal Cases (AC) (which includes judgments from the House of Lords), Queen's Bench Division (QBD), Chancery (Ch) and Family (Fam).

Older, discontinued series include Crown Cases Reserved 1865-75 (LR CCR) and Probate, Divorce & Admiralty Division 1891-1970 (P).



Both the Law Reports and the Weekly Law Reports (WLR) are published by the Incorporated Council of Law Reporters (ICLR)

Judgments that appear in volumes 1 and 2 of the WLRs will be published in the Law Reports, after they have been checked by the judges

The Law Reports are the only reports that include arguments of counsel. The All England Law Reports

The All England Law Reports (All ER) began in 1936. They are published by Butterworths/Lexis Nexis, and are a rival publication to the Law Reports.

The All ERs report significant judgments from the Courts of Appeal and High Courts, and ECJ cases since 1995.

The All ERs are generally considered to be second in authority to the Law Reports. Where are the All ERs? Online in Lexis Nexis.

Index to the All ERs

The All ERs Index consists of three volumes, published annually

Volume 1 indexes all reported cases and UK and EU legislation judicially considered Volumes 2 and 3 are a subject index.

EAST AFRICA MATERIALS

1. E.A.L.J.I is a legal periodical and cited by volume and contains an index e.g. cite (1969) 5 E.A.L.J.I
2. E.A.L.R published in London. Started in 1957 and came out annually in four quarters. They contained decisions of all East African countries. These are decisions of HC, CA and formally P.C
3. E.A.C.A started in 1937 and ceased in 1956. used to come out annually

and cited by volumes e.g. (1953) 23 EACA



4. K.L.R began in 1922 and contains decisions from the Privy Council and Court of Appeal. They are cited by volumes (1922) 9 K.L.R. from 1934 to 1956 there were volumes 16-29. they started reporting cases in High Court
5. H.C.D for Tanzania law: compiled by Faculty of Law at Dar es Salaam, citation by square brackets e.g. [1965] H.C.D 20
6. T.L.R (Revised) cited T.L.R
7. H.C.B (monthly bulletins) replaced by H.C.B compiled by the Department of Law Reporting at L.D.C. it reports cases of HC and CA, usually there is an index for such year.
8. H.C.B reports cases sometimes after two years and sometimes after three years.
9. Kampala Law Reports (KALR) started by an advocate and reports cases from 1989 from HC, CA and SC and only those the reporter deems important. Some judges don't use it – its not official.

Law Reporting in Uganda has been very weak and thus very few law reports have been published in Uganda since 1958.

The Law Development Centre is mandated to prepare and publish law reports and other legal materials but so far have published only High Court Bulletins.

Lawyers are forced to depend on photocopies of judgments requested from the courts.

Law Reporting in Uganda

Ugandan judgments are reported in the following law report series

1. East Africa Law Reports: the reports covered decisions of the CA for East Africa and the superior courts of the constituent territories: Kenya, Uganda, Tanzania, Aden, Seychelles and Somaliland.

Published from 1957 – 1975 when they collapsed following the dissolution of the EAC They have been reintroduced by Law Africa with the launch of EA 2000 and EA 2001



2. Uganda Commercial Law Reports – The reports cover decisions of Commercial Division of the High Court of Uganda since its establishment in 1996

The first in series of the law reports, 1997 – 1998 UCL was launched in November 2005.

3. Tax Appeals Tribunal Compendium of Judgments and Rulings – covers decisions of the Tax Appeals Tribunal.
4. Kampala Law Reports – published by a private lawyer
5. High Court Bulletin – published by the LDC
6. Uganda Law Reports – last published in 1957
7. Law Reports of the Court of Appeal of Eastern Africa – Reporting decisions of the defunct Court of Appeal of Eastern Africa.

ELECTRONIC RESOURCES AND SCHOLARLY WRITING

- Introduction
- Ethics
- Non-fee based (Free) Sources
- Fee-based (Commercial) Sources
- CD-ROM

INTRODUCTION

Nowadays and in modern libraries authors and subject catalogues can be search in the computer and the location of the materials can be retrieved.

Many of the primary and secondary authorities are available in variety of sources.

They may be published in one or more books. Many are also available in electronic form.

Similarly, some books are in electronic format making it easier to access the materials using the computer and any portion of the book may be printed.

Internet has also become an important part of life and a source of information due to the rapid changing nature of the world.



Electronic research services may include commercial databases that charge each user a fee for access, internet and CD-ROM subscription.

Series of information including statutes, cases, academic papers are now reported in the internet.

As internet materials are not arranged as prints materials are, utilizing this source of information requires having the necessary skills and knowledge.

ETHICS

There are literary thousands of non-fee based websites.

Note that a non-fee based service does not involve a contractual relationship with the consumer of its information.

No laws or regulations govern the accuracy of the content of non-fee based websites. Such sites do not have a legal duty to provide information that is accurate or up to date. There is an ethical obligation to provide the client with competent representation.

Some of the factors to consider before using information from these sites include the following:

1. **Authority:** i.e. who is the author? Use sources written by respectable authors.
2. **Accuracy of the Information:** i.e. does the information represents an accurate state of affairs? Scrutinize the information presented against the law and evaluate if the information is accurate before using it.
3. **Currency:** i.e. how current is the information? Has the information been overtaken by time? Check the date. Never use outdated information.
4. **Stability:** i.e. is the website stable or not? You can only be able to know this if you are a frequent visitor. Check who owns it whether an individual or

institution. Institutional websites are considered more stable.



NON-FEE BASED WEBSITES

The addresses of websites are referred to as uniform resource locators, or URLs.

If a website is not at the address listed, it does not mean that the site no longer exists.

The site could be down temporarily due to technical problems, or the address may have changed.

To determine whether an address has change, do an online search for a key term in the address:

Example: if looking for Legal-Pad and the site does not come up at

<http://www.legal-pad.com>, perform a search using the keywords *legal pad*. If you are looking for a school's law library, search under the name of the school and *law library*.

If you are not able to retrieve a specific page, go to the home page.

Example: if you are searching for the composition of the Parliament of Uganda at the following address: <http://www.parliament.go.ug/new/index.php/about-parliament/composition-of-parliament>, the home page is

<http://www.parliament.go.ug>. The directory of information on the home page includes links to the composition of the Parliament.

Some non-fee based websites include:

1. **Uganda Legal Information Institute:** <http://www.ulii.org>. It is one of few resources providing free access to the law of Uganda.

It provides the most current and complete digital collection of Uganda case law from all courts of record in Uganda, Laws of Uganda, 2000 and a selection of Ugandan legislation as enacted.

2. **African Law Reporter:** <http://www.jurisafrica.org/>. It provides access to articles, cases, constitutions, African law, statutes and other useful

publications.

3. **African Legal Information Institute:** <http://www.africanlii.org/>. It provides access and links to statutes, cases, and legal institutions in many African Countries.
4. **Law Commons – Free Law Journals:** <http://network.bepress.com/law/>. It provides access to journal articles on numerous areas of law.
5. **Findlaw:** <http://www.findlaw.com/>. It is considered one of the best and most comprehensive sites providing links to sources for US Federal and State statutory law,



case law, government directories, law firms, legal organisations, law schools, legal practice materials and numerous other sources.

6. **Library of Congress:** <http://www.loc.gov>. Through this website, you can locate any book that has been published and that has an ISBN number.
7. **Lawguru:** <http://www.lawguru.com/>. It provides links to websites for hundreds of legal resources.

Most law schools and government agencies have websites providing wealth of information.

Search Terms

Computer searches are usually conducted using key words or terms from the issue (often referred to as Boolean searches, or terms and connectors searches).

The basic step for determining the search terms are as follows:

1. State the issue you are researching as specifically as possible in the context of the facts.
2. Formulate the search query. Review the issue and select the significant terms. Ask yourself, what terms in the issue are likely to be included in the constitutional provision, statute or case I am researching?

Example: The issue is as follows: under statutory law, does bank robbery with a dangerous weapon occur when the weapon is a toy gun?

The assignment is to locate the statutory law that govern bank robbery with a dangerous weapon. You are looking for a statute that includes the terms *bank*, *robbery*, *dangerous* and *weapon*.

Once the terms are identified, type them in the search query box and execute the search by clicking the appropriate command, such as Search or Submit.

FEE-BASED (COMMERCIAL WEBSITES)

Accessing these sites requires registration and
subscription. Some of the most renown sites are:



1. **WESTLAW:** This may be <http://westlaw.com> for the United States or <http://legalresearch.westlaw.co.uk/> for the United Kingdom.

It provides access to thousands of primary and secondary research sources.

2. **LEXISNEXIS:** <http://www.lexisnexis.com/en-us/gateway.page> . Like Westlaw, is a commercial legal research service that provides access to thousands of primary and secondary research sources.

In Westlaw and LexisNexis, materials are available on specific practice areas, forms, public records of all types, news sources, business materials, periodicals, legal treatises, litigation materials, legal and other statistical information sources, directories of all types, law reviews and international materials.

3. **LAW AFRICA:** <http://lawafrica.com/>. It contains the widest collection of law reports and legal resources in East Africa.

Most universities have subscribed to the most recognized commercial websites and can be accessed in the library, within the University or off campus with a login detail supplied by the University. Confirm from the Library.

DATABASE SEARCHING/CD-ROM

Many legal resources are available on CD-ROM.

For obvious space-saving, many institutions or law firms purchase legal materials in CD-ROM.

CD-ROMs have the advantage of allowing a researcher to conduct research at home, at court, or on the road through the use of computer.

Publishers usually update their CD-ROMs at regular intervals, such as monthly or quarterly. The disadvantage is that the material is only as current as the update.

Many law libraries have research sources on CD-ROM and a person knowledgeable in computerized search it may be easier to perform a search using a CD-ROM.



DOCTRINAL AND EMPIRICAL RESEARCH

- Introduction
- Doctrinal Legal Research
- Empirical Legal Research
- Hypothesis
- Research Design
- Sampling

INTRODUCTION

A scholar of law, interested in legal research, may adopt any of the following courses in doing his research

1. Write a historical essay showing the development in a field of law or a particular doctrine.
2. Analyze a legal doctrine, rule, principle or concept to see whether it matches with the hitherto judicial statements and to suggest new set of statements or principles if the existing ones, in his opinion, do not match.

While doing so, he can highlight ambiguity in the doctrine or gaps prevalent therein and state, with rationale and reasons.

3. Write a kind of survey on the recent developments in law summarizing the most important cases, analyzing how they have followed, or deviated from, the past cases, and make a guess as to what the courts would do in future.
4. Write about „what I believe in“. This is usually a matter of deploring a legislative or judicial trend.
5. Write about „relationship“ between the „law“ and the „world“ i.e. other behavioral sciences.

These broad five options available to a legal scholar can be divided into two broad

categories of legal research:

- i. Doctrinal Legal Research; and



ii. Non-doctrinal Legal Research

DOCTRINAL LEGAL RESEARCH

It is a research into legal rules, principles, concepts or doctrines.

It involves a rigorous systematic exposition, analysis and critical evaluation of legal rules, principles or doctrines and their inter-relationship.

It arranges the existing law in order and provides thematic parameters for such an order.

It also concerns with critical review of legislations and of decisional processes and their underlying policy.

Doctrinal legal research, as conceived in the legal research domain, is research „about“ what the prevailing state of legal doctrine, legal rule, or legal principle is.

A legal scholar undertaking doctrinal legal research, therefore, takes one or more legal propositions, principles, rules or doctrines as a starting point and focus of his study.

He „locates“ such a principle, rule or doctrine in statutory instrument(s), judicial opinions thereon, discussions thereof in legal treatises, commentaries, textbooks, encyclopedias, legal periodicals, and debates, if any, that took place at the formative stage of such a rule, doctrine or proposition.

Thereafter, he „reads“ them in a holistic manner and makes an „analysis“ of the material as well as of the rules, doctrines and formulates his „conclusions“ and writes up his study.

For example, a legal researcher interested in criminal law might start with proposition dealing with right against self- incrimination.

Research then takes place in the law library, where he will „locate“ the proposition (along with its different contours) and its discussions in treatises and textbooks on criminal law, criminal procedure, and constitutional law, encyclopedia and leading

legal periodicals.

He will also try to locate all relevant judicial pronouncements of the higher judicial institutions delved into the right against self-incrimination.



He will then „read“ these materials and „analyze“ them by applying his power of reasoning and will, premised on analytical perspective and the material used, draw some conclusions about the proposition.

He then will write up his study.

He may, in his study advance a set of formulations, supportive or otherwise, with convincing

„reasoning“ about the proposition - the right against self-incrimination.

He, in his research report, may offer an alternative comprehensive paradigm of the doctrine. With a view to drawing parallels between the doctrine or rule under inquiry, he may also find a comparable doctrine or rule from other jurisdictions.

He may, depending upon „objectives“ of his research, also propose a new formulation of the rule or doctrine, a model statute or a statutory provision.

He may also highlight the purpose and policy of law that exist and may propose what it ought to be.

Doctrinal legal research, thus, involves:

- i. Systematic analysis of statutory provisions and of legal principles involved therein, or derived therefrom, and
- ii. Logical and rational ordering of the legal propositions and principles.

The researcher gives emphasis on substantive law rules, doctrines, concepts and judicial pronouncements.

Aims of Doctrinal Legal Research

Doctrinal Legal Research aims:

- i. to study case law and statutory law, with a view to find law;
- ii. at consistency and certainty of law;

- iii. (to some extent) looks into the purpose and policy of law that exists; and
- iv. to study legal institutions.



Basic Tools of Doctrinal Legal Research

The basic tools of a doctrinal legal researcher are:

- i. Statutory materials;
- ii. Case reports;
- iii. Standard textbooks and reference books;
- iv. Legal periodicals;
- v. Parliamentary Debates and Government Reports; and
- vi. Micro films and CD-ROM.

These tools, depending upon the nature of information they contain, may be re-categorized into primary and secondary sources of information.

Advantages of Doctrinal Legal Research

- i. It provides quick answers to the problem. It provides lawyers, judges and others with the tools needed to reach decisions on an immense variety of problems, usually with very limited time at disposal.
- ii. It attempts to test the logical coherence, consistency and technical soundness of a legal proposition or doctrine.
- iii. It contributes in our „understanding“ of „law“, legal concept/doctrine, and legal processes in a better way.
- iv. It exhibits „inbuilt“ „loopholes“, „gaps“, „ambiguities“ or „inconsistencies“ in the substantive law.
- v. It helps in theory building through the support of other researchers.
- vi. It may predict „future“ of the principle, concept or doctrine, its probable „contents“ and

„directions“ in which it is likely to proceed in future.



- vii. It provides a sound basis for non-doctrinal legal research which requires a strong base of doctrinal legal research. It is necessary to acquire sufficient grounding and experience in doctrinal legal research before embarking upon non-doctrinal research.

Limitations of Doctrinal Legal Research

- i. Subjectivity: different scholars depending upon the reasoning power and analytical skills may analyze legal concepts differently.
- ii. Since there is no support from social facts or values it may be far from social reality and inadequate.
- iii. It does not involve a study of the factors that lie outside law or legal system but have directly or indirectly influenced the operation of the law, a legal rule, concept or doctrine.
- iv. Sole reliance on traditional sources of law and judicial pronouncements of appellate courts may leave the actual practice and attitude of lower courts and of administrative agencies with quasi-judicial powers, whose judgments remain unreported, unexplored.

NON-DOCTRINAL LEGAL RESEARCH/EMPIRICAL RESEARCH

Non-doctrinal legal research is defined as research into relationship of law with other behavioral sciences.

It gives prominence to relationship of law with people, social values and social institutions.

It involves empirical inquiry into the operation of law. The researcher wants to know to what extent certain legal rules work or have worked.

Doctrinal legal research endeavors to develop theories, and non-doctrinal legal research endeavors to see as to whether the theories, the doctrines, that we have

assumed are appropriate to apply in society at a given time, are still valid and relevant.

Doctrinal legal research is „research in law“ while non-doctrinal legal research is „research about law“.

It gets its data primarily from sources other than law [i.e. society] and focuses on „social reality of law“ rather than on „law“ itself.



It is also known as „empirical research“, „socio-legal research“, „sociology of law“ or „non-library research“.

Aims of Non-doctrinal Legal Research

It tries primarily to seek, among other things, answers to:

- i. Are laws and legal institutions serving the needs of society?
- ii. Are they suited to the society in which they are operating?
- iii. What forces in society have influenced shaping or re-shaping a particular set of laws or legal norms?
- iv. Are laws properly administered and enforced or do they exist only in statute books?
- v. What are the factors, if any, responsible for poor or non-implementation of the laws?
- vi. What are the factors that influenced the adjudicators (courts or administrative agencies) in interpreting and administering the laws?
- vii. For whose benefit a law is enacted, and are they using it? Have the intended „legislative targets“ benefited from the law? If not, for what reasons? Where do „bottlenecks“ lie?
- viii. What has been impact of the law or legal institutions in changing attitude of the people or molding their behavior? and what are the social obstacles in realization of the expected behavior or change?

Basic Tools of Empirical Research

- i. Interview
- ii. Questionnaire
- iii. Schedule

- iv. Interview guide
- v. Observation: participant or non-participant, and
- vi. Published or unpublished materials



The first four methods of data collection are „primary sources“ as they are used in getting the required information „directly“ from the respondents.

The last is „secondary source“ of information, the researcher collects the information „indirectly“.

Interview: a verbal technique of data collection, may be structured or unstructured.

Structured involves the use of a set of pre-determined questions and highly standardized technique of recording responses thereto.

Unstructured is characterized with flexibility of approach to questioning the respondents and lesser-standardized way of recording the responses.

Questionnaire: this is where a number of typed or printed pre-determined questions are used for collecting data.

It is usually mailed to the respondents with a request to respond the questions in the space provided therefor and to send it back to the investigator.

Like interview, questionnaire may be structured or unstructured. The questions may be open- ended, close-ended, mixed or pictorial.

Schedule: is referred to as a form filled in during a personal interview in which both the interviewer as well as the respondent are present.

In this method, the investigator himself presents the questions to the respondent and records his response.

Questionnaire and schedule have much in common. In both the forms of data collection, the wordings of the questions are the same for all the respondents.

There are however, two prominent differences:

- i. Questionnaire is usually mailed to the respondents for filling in their responses to the questions listed therein, whereas schedule is referred to a form filled in

by the interviewer during his personal interview with the respondent.



- ii. Questionnaire, due to its impersonal nature, is rigid, whereas schedule, which like in interview allows the investigator to clarify questions, if they are not clear to the respondent, is more flexible.

Interview Guide: It contains only the topic or broad headings on which the questions are to be asked to the respondents.

The researcher formulates questions on these topics on the spot and records the responses thereto.

Interview guide is generally used in case of qualitative or in-depth interviews.

Observation: this involves a visual method of data collection which may be participant or non-participant.

In participant, the investigator mingles with the respondents to observe and record a phenomenon. While in non-participant, he observes and records a phenomenon from distance.

Advantages of Non-doctrinal Legal Research

- i. It highlights the „gaps“ between „legislative goals“ and „social reality“ and thereby „depict“ a „true picture“ of that „law-in-action“.
- ii. It assesses „role and contribution of law“ in bringing the intended social consequences. It highlights the „factors have been creating „impediments“ or posing „problems“ for the law in attaining its „goal(s)“.
- iii. It provides an „expert advice“ and gives significant feedback to the policy-makers, Legislature, and Judges for better formulation, enforcement and interpretation of the law.

Limitations of Non-doctrinal Legal Research

- i. It is extremely time consuming and costly. It calls for additional training in

designing and employing tools of data collection and entails greater commitments of time and energy to produce meaningful results

- ii. It needs a strong base of doctrinal legal research. A legal scholar who is weak in doctrinal legal research cannot handle non-doctrinal legal research in a meaningful way.



- iii. The basic tools of data collection are not simple to employ. They require specialized knowledge and skill from the stage of planning to execution.
- iv. It becomes inadequate and inapt where the problems are to be solved and the law is to be developed from case to case (like in administrative law and law of torts).

HYPOTHESIS

Formulation of hypothesis becomes essential in studies involving use of empirical research techniques.

„Hypothesis“ is derived from two words: „hypo“ means „under“, and „thesis“ means an „idea“ or „thought“. Hence, hypothesis means „idea“ underlying a statement or proposition.

Ordinarily, „hypothesis“ is a plausible statement or generalization that is susceptible to empirical testing in a scientific manner.

It is a mere assumption, some supposition, a predictive or a provisional statement, that is capable of being objectively verified and empirically tested by scientific methods.

In its most elementary stage, a hypothesis may be a mere hunch, guess, or an imaginative idea.

It is a tentative statement of presumed relationship between two or more concepts or variables.

A hypothesis, therefore, needs to be formulated in such a way that one can gather empirical evidence for verifying or refuting its correctness. It may prove correct or incorrect.

If a hypothesis is empirically proved, the problem, which was tentative in the beginning of the research, is answered. The statement ceases to be a mere proposition. It becomes a verified fact.

If hypothesis is not proved, the statement, in the absence of empirical support, merely remains as a proposition, probably, seeking for validity in future.

Definition of Variable

A variable is an object, event, idea, feeling, time period, or any other type of category you are trying to measure.



Types of Variables

- i. Independent
- ii. Dependent

Independent Variable: An independent variable is exactly what it sounds like. It is a variable that stands alone and is not changed by the other variables you are trying to measure.

For example, someone's age might be an independent variable. Other factors (such as what they eat, how much they go to school, how much television they watch) are not going to change a person's age.

- ii. **Dependent Variable:** It is something that depends on other factors. For example, a test score could be a dependent variable because it could change depending on several factors such as how much you studied, how much sleep you got the night before you took the test, or even how hungry you were when you took it.

Usually when you are looking for a relationship between two things you are trying to find out what makes the dependent variable change the way it does.

Sources of Hypothesis

- i. **guess or Intuition**

A hypothesis may be based simply on hunch or intuition of a person. It is a sort of virgin idea.

Such a hypothesis, if tested, may ultimately make an important contribution to the existing science or body of knowledge.

- ii. **Findings of Others**

A hypothesis may originate from findings of other study or studies.

If such a hypothesis is proved, it confirms findings of the earlier studies though it replicates earlier study conducted in different concrete conditions.



iii. **A Theory or a Body of Theory**

A hypothesis may stem from existing theory or a body of theory. A theory represents logical deductions of relationship between inter-related proved facts.

A researcher may formulate a hypothesis, predicting or proposing certain relationship between the facts or propositions interwoven in a theory, for verifying or reconfirming the relationship.

iv. **General Social Culture**

General social culture, in which a science develops, furnishes many of its basic hypotheses.

Particular value-orientation in the culture, if it catches attention of social scientists for their careful observation, generates a number of empirically testable propositions in the form of hypotheses.

v. **Analogy**

A proved particular pattern of human behavior, in a set of circumstances or social settings, may be a source of hypothesis.

A researcher may be tempted to test these established co-relations with similar attributes in different social settings.

vi. **Personal Experience**

The history of science is full of instances of discoveries made because the „right“ individual happened to make the „right“ observation because of his particular life history, personal experience or exposure to a unique mosaic of events.

Personal experience or life history may influence perception and conception and in turn direct quite readily to formulate certain hypothesis.

**CHARACTERISTICS OF A WORKABLE HYPOTHESIS OR USABLE
HYPOTHESIS**



A „workable“ or „usable“ hypothesis would be the one that satisfies many of the following criteria:

i. **Hypothesis Should be Conceptually Clear**

The concepts used in the hypothesis should be clearly defined, not only formally but also, if possible, operationally.

Formal definition of the concepts will clarify what a particular concept stands for, while the operational definition will leave no ambiguity about what would constitute the empirical evidence or indicator of the concept on the plane of reality.

ii. **Hypothesis Should be Specific**

A hypothesis should be couched in specific terms. No vague or value-judgmental terms should be used in formulation of a hypothesis.

It should specifically state the posited relationship between the variables.

Specific formulation of a hypothesis assures that research is practicable and significant.

A researcher, therefore, must remember that narrower hypothesis is generally more testable and he should develop such a hypothesis.

iii. **Hypothesis Should be Empirically Testable**

A hypothesis should be formulated in such a way that it is possible to be verified empirically.

It should have empirical referents that it will be possible to deduce certain logical deductions and inferences about it. It should be conceivable and not absurd.

A researcher should avoid using terms loaded with values or beliefs or words having moral or attitudinal connotations in his hypothesis. For example:

Criminals are no worse than businessmen

Capitalists exploit their workers

Bad parents beget bad

children Bad homes breed

criminality

SIKIA
Low

Pigs are well named because they are so dirty

iv. **Hypothesis Should be Related to Available Techniques**

It is necessary that a hypothesis should be related to available techniques of data collection. A researcher who does not know what techniques are available to him to test his hypothesis cannot test his hypothesis.

A hypothesis, therefore, needs to be formulated only after due thought has been given to the methods and techniques that can be used for measuring the concepts or variables incorporated in the hypothesis.

v. **Hypothesis Should be Related to a Body of Theory or Some Theoretical Orientation**

While formulating his hypothesis, a researcher has to take a serious pause to see the possible theoretical gains of testing the hypothesis.

A hypothesis, if tested, helps to qualify, support, correct or refute an existing theory, only if it is related to some theory or has some theoretical orientation.

Role of Hypothesis

1. It helps in navigating research in a proper direction.
2. It contributes in testing or suggesting theories.
3. It helps in describing a social or legal phenomenon.

RESEARCH DESIGN

Once a research problem is formulated clearly enough, the researcher has to think of pursuing it.

He has to think about the information that is needed, the way to gather it, and the manner in which it is analyzed and interpreted.

In other words, he has to work out the „plan“ and „design“ of his

research. The process of research design is similar to an architect designing a building.



A researcher has, therefore, to „design“ his research before he pursues it so that he can anticipate the problems that he may encounter during his research journey and can take appropriate precautions and measures to overcome them.

Research design refers to the visualization of the entire process of conducting research before its commencement.

It is a planned sequence of the entire process involved in conducting a research study. It is a conceptual structure within which the research is to be conducted.

It is the plan, structure and strategy of investigation conceived so as to obtain answers to research questions from formulating the research problem to the final analysis of the data and presenting his inferences.

The major design decisions, which are required to be taken, are to be in reference to the following aspects:

1. What is the study about?
2. What is the purpose of the study and its scope?
3. What are the types of data required?
4. Where can the needed data be found and what are their sources?
5. What will be the place or area of the study?
6. What periods of time will the study include?
7. What time is approximately required for the study?
8. What amount of material or number of cases will be needed for the study?
9. What bases will be used for the selection of the required material/cases?
10. What techniques of data gathering will be adopted?
11. What type of sampling, if required, will be used?

12. How will the data be analyzed?



13. How best can all these questions be decided upon and what should be made so that research purpose will be achieved with minimum expenditure of money, time and energy?

MAJOR CONTENTS OF RESEARCH DESIGN

1. Formulation of the research problem.
2. Decision about suitable population for the study and setting down the sampling procedure.
3. Devising tools and techniques for gathering data.
4. Determination of the mode of administering the study.
5. Setting the arrangements for the editing, coding and processing of data.
6. Indicating the procedures and statistical indices for the analysis of data.
7. Deciding about the mode of presentation of the research report.

Types of Research Design

i. Exploratory or Formulative Research Design

Generally, every research study is built upon the existing stock of our knowledge.

But occasionally a researcher may be confronted with a problem in a hitherto uncharted area without sufficient knowledge even to formulate his problem adequately.

The researcher has little or no knowledge about the problem. He just wants to „explore“ it. His primary aim is to acquaint with the characteristics of research target.

He intends to discover ideas and to have insight into the problem or situation under investigation. Generally, the important methods to conduct exploratory studies

include:

- a) a review of the related literature;
- b) a survey of people who have had practical experience of the broad problem with the problem to be studied; and



- c) an analysis of „insight-stimulating“ cases or examples.

ii. **Descriptive and Diagnostic Research Designs**

A descriptive research study is concerned with describing the characteristics of a particular individual or a phenomenon.

It is mainly a fact-finding study with adequate interpretation.

Such a study, unlike exploratory study, presupposes prior knowledge of the problems to be investigated.

In descriptive studies, the researcher must be able to define clearly what he wants to measure and find adequate methods for measuring.

In such a study, what is needed is a clear formulation of „what“ and „who“ is to be measured, and the techniques for valid and reliable measurements.

A diagnostic research is more directly concerned with causal relationships and with implications for action than a descriptive study.

It is more concerned with the frequency with which something occurs or its association with something else.

A descriptive study is oriented towards finding out what is occurring while a diagnostic study is directed towards discovering not only what is occurring but also why it is occurring and what can be done.

iii. **Experimental or Explanatory Research Design**

Experimental studies deal with cause and effect problems. They are concerned with testing the causal hypotheses.

Role of Research Design

- i. It provides the researcher with a blue print of the proposed research.

- ii. It dictates boundaries of the research activity.



- iii. It enables the researcher to anticipate potential problems in the implementation of the study.
- iv. It enables the researcher to estimate the cost of his research, possible measurement of problems and optimal research assistance.

SAMPLING

Definition of Some Key Technical Concepts

i. Sampling and Population

The whole group from which the sample is drawn is technically known as universe or population and the group actually selected for a study is known as sample.

Population refers to all of the cases. Since it is usually difficult for any researcher to study the entire universe or the total population (people or things) he/she proposes to investigate, it becomes incumbent upon him/her to select a portion of elements taken from the larger portion or population.

Such a portion is referred as a sample and the process of drawing these elements from the larger population or universe is called the sampling method.

ii. Stratification and Sub-population

Stratification is a technique of dividing the whole group from which the sample is drawn/the population into a number of strata or groups, and thereby those strata are called sub-population.

Assumptions Underlying in Sampling

- i. The units or samples selected must have likeness or similarity with other units to make the sampling more scientific.
- ii. The sample should be such that it can represent adequately the whole data.
- iii. Each unit should be free to be included in the sample.

- iv. Absolute accuracy is not essential in the sample method. The results of the sampling method should be such that valid generalizations can be drawn.



- v. The maximum amount of information must be gathered as accurately as possible.

Factors to be Considered while Drawing Sample

- i. The universe or population must be defined precisely;
- ii. Before drawing a sample, the unit of the sample should be defined;
- iii. The appropriate source list which contains the names of the units of universe or population from which the sample is to be selected should be prepared beforehand in case it does not already exist, and
- iv. The size of the sample to be selected should be pre-determined.

Major Sampling Techniques: Random and Non-Random

There are various types of sampling plans which are usually divided based on probability/random samples - where the probability of the selection of each respondent is known and on non-probability/non-random samples, where it is not known.

Probability/Random Sampling Techniques:

Probability samples are classified into the following five types of sampling methods:

- i. **Simple Random Sampling:** This involves selection at random from the sampling frame of the required number of persons for the sample.

If properly conducted, this gives each person an equal chance of being included in the sample, and also makes all possible combination of persons for a particular sample size equally likely.

It is more suitable in more homogeneous and comparatively larger groups.

A random sample can be drawn either by lottery method or by selecting from sequential list.

- ii. **Systematic Sampling:** This involves choosing a starting point in the sampling frame at random, and then choosing every n th person.

Thus if a sample of fifty is required from a population of 2,000, then every fortieth person is chosen.



The problem of simple random and systematic samplings is, that both require a full list of the population, and getting this list is often difficult.

- iii. **Stratified Random Sampling:** This involves dividing the universe or population into a number of groups or strata, where members of a group share a particular characteristic or characteristics (e.g. stratum A may be females; stratum B males).

There is then random sampling within the strata.

- iv. **Cluster/Area Sampling:** This involves dividing the population into a number of units, or clusters, each of which contains individuals having a range of characteristics.

The clusters themselves are chosen on a random basis. The sub-population within the cluster is then chosen.

This tactic is particularly useful when a population is widely dispersed and large, requiring a great deal of effort and travel to get the survey information.

- v. **Multistage Sampling:** This is an extension of cluster sampling.

This method is generally used in selecting a sample from a very large area. It involves selecting the sample in stages, i.e. taking samples from samples.

Thus one might take a random sample of schools, then a random sample of the classes within each of the schools, and then from within selected classes choose a sample of children.

Non-probability/Non-Random Sampling Techniques

In probability sampling it is possible to specify the probability that any person (or other unit on which the survey is based) will be included in the sample. Any sampling plan where it is not possible to do this is called 'non-probability sampling'.

- i. **Quota Sampling:** Here the strategy is to obtain representative of the various elements of a population, usually in the relative proportions in which they occur in the population. (e.g. 20 male, 20 females)

Quota sampling is a special form of stratified sampling. According to this method, the universe is first divided into different strata. Then the number to be selected from each stratum is decided.

This number is known as quota.



- ii. **Dimensional Sampling:** It is an extension of quota sampling. The various dimensions thought to be of importance in a survey are incorporated into the sampling procedure in such a way that at least one representative of every possible combination of these factors or dimension is included.
- iii. **Convenience Sampling:** It involves choosing the nearest and almost convenient persons to act as respondents.

The process continues until the required sample size is reached.

It is sometimes used as a cheap and dirty way of doing a sample survey. You do not know whether or not findings are representative.

- iv. **Purposive Sampling:** The principle of selection in purposive sampling is the researcher's judgment as to typicality or interest.

A sample is built up which enables the researcher to satisfy his/her specific needs in a research project.

Accordingly, when the researcher deliberately or purposively selects certain units for study from the population it is known as purposive selection.

In this type of selection the choice of the selector is supreme and nothing is left to chance.

It is more useful especially when some of the units are very important and, in the opinion of the researcher, must be included in the sample.

Snowball Sampling: Here the researcher identifies one or more individuals from the population of interest (for e.g. selecting a few judges, prosecutors or advocates for interview in conducting research on effectiveness and efficiency of the Federal judiciary system).

After they have been interviewed, they are used as informants to identify other members of the population, who are themselves used as informants, and so on.

Snowball sampling is useful when there is difficulty in identifying members of the population,

e.g. when this is a clandestine group. It can be seen as a particular type of purposive sample.



Importance of Sampling in Social /Legal Research-

Sampling has occupied an important place in social research due to the following factors:

- i. With the help of this method a large number of units can be studied. When the area is very large this method can be applied easily.
- ii. This method saves a lot of time, energy and money.
- iii. When all the units of an area are homogenous sampling technique is very useful.
- iv. Intensive study is possible through this method.
- v. When the data are unlimited, the use of this method is very useful.
- vi. When 100 percent accuracy is not required, the use of sampling technique becomes inevitable.

Advantages/Merits of Sampling

The advantages/merits of sample surveys are usually summed up as follows:

- i. **Economy:** This includes economy of cost and of time because only a limited number of units have to be examined and analyzed.
- ii. **Accuracy:** The quality of data collected should be better because the quality of enumeration and supervision can be higher than in a census. It ensures completeness and a high degree of accuracy due to small area of operation.
- iii. **Adaptability:** Many topics, particularly those involving detailed transactions of individuals or households, cannot conceivably be covered by a census. A sample is the only mode of inquiry available.
- iv. **Feasibility:** The administrative feasibility of a sampling plan as compared to the complex organization required for a census of the total population.

- v. **Organizational Facilities:** Sampling involves very few organizational problems as is conducted by few enumerators.



- vi. **Reliable Inferences:** The data collected by well-trained investigators on a sample basis are quite reliable.
- vii. **Intensive in Nature:** Since the area of the study is quite small a detailed and intensive study is possible through this method.
- viii. **Vast Data:** When the numbers of units are very large, or the units are scattered, sampling technique is very useful, and can be conducted in a convenient manner.

Demerits of Sampling

- i. **Less Accuracy:** If the method of sampling is faulty, the conclusions derived from this become inaccurate.
- ii. **Difficulties in Selecting a Representative Sample:** If the phenomena are of complex nature, the selection of representative sample is very difficult.
- iii. **Changeability of Units:** If the units are not homogenous, the sampling technique will be hazardous and unscientific.
- iv. **Need of Specialized Knowledge:** The sampling technique becomes scientific and successful when it is done by specialized investigators. If this is done by ordinary people the conclusions derived from this technique may be biased and sometimes entirely wrong

WRITING A RESEARCH PAPER

- Introduction
- Work Outline/Parts of Thesis
- Selecting and Arranging Materials
- Writing a Research Report
- Structural Layout/Organisation of Research Report
- References and Citations

INTRODUCTION

Before the commencement of a paper writing, the writer must have visualized the structure of the writing – how the paper, dissertation, thesis or article would look like.

This structure is captured in the form of chapters to be written in the paper, dissertation, thesis or article.

But there are equally important information which such a paper should contain in the form of preliminary information.

The research paper needs to hence have an outline.

WORK OUTLINE/PARTS OF A THESIS

The format of a research paper could be divided into three parts:

1. Preliminaries
2. Text
3. References

Preliminaries

These include the following:

- i. Title Page

ii. Preface/Foreword

iii. Dedication



- iv. Copyright Statement
- v. Declaration
- vi. Certification
- vii. acknowledgement
- viii. Table of Contents
- ix. Table of Abbreviation (if any)
- x. Table of Cases
- xi. Table of Statutes
- xii. Glossary
- xiii. Abstract

Title Page

This is the page that contains the title of project or book.

The accepted practice is that wordings of title page should be as short as possible.

It should be clear and precise and should represent what a reader expects to find in the book, project, dissertation or thesis.

It should not be more than 21-23 words.

It should be narrow in scope. The narrower the title, the likely the in-depth study of the topic or subject-matter and the wider the title, the shallower the discussion will be.

Dedication

This is a kind of sentiment which authors usually express in their books. It is an expression which shows degree of intimacy or importance or special contribution

given by the person to whom the book is dedicated.



Copyright Statement

This is done to show that the author reserves all the rights in the books and no part of such book may be reproduced, stored in a retrieval system or transmitted in any form or by any means except with the express permission of the author.

Table of Contents

This is the list of topics discussed in the book.

A typical law books contains all major and sub-topics discussed in the book. Each numbered in Roman or Arabic numerals.

Each major and minor topic should appear in the table of contents and if possible against the topics, there should be an indication of page numbers.

Preface/Foreword

A preface is a part of a book the contains the purpose for which the book was written. The author usually writes it.

It shows how a particular book should be used. It directs the user on how to get information or the resources he wants.

Declaration

This is a statement made by the writer that the book is the product of his mental work, that it was not written by another person.

It also contain statements that ideas generated from other sources have been duly acknowledged.

Certification

This is a statement by the author that is certified by designated members of the faculty that the dissertation had conformed with the rules and regulations governing the dissertation in the Faculty.

Such designated members may include the Dean, Head of
Department etc. This is not necessary when writing a book.



Acknowledgements

This section contains the writer's expression of gratitude to the persons who assisted during the course of the research, school or career.

It should be as brief as possible and not more than a page.

Abstract

This is a summary of the substance of the research work which is always short.

In ordinary summary work, it is supposed to be 1/7 of the length of the original work. An abstract of about 2-3 pages would suffice.

Table of Abbreviations

Abbreviations are synonyms of long expressions and should not be left without explanations. Lawyers are fond of using abbreviations e.g. of citation of cases, journals, name of parties etc. Glossary

It is a list of definition of some technical terms used in a research project or book. This helps readers to understand the work more easily.

It should be presented in alphabetical order

Table of Cases

Cases are one of the tools a lawyer uses to mould his craft and are good sources of discovering laws.

Ability to make quick reference to cases is a good skill, which every lawyer must have. This may be facilitated if there is a complete and elaborate table of cases cited or referred to in the work.

It should be arranged in alphabetical order.

Table of Statutes

This is a list of statutes referred to in the work with pages where they are cited or mentioned arranged in alphabetical order.



SELECTING AND ARRANGING MATERIALS

Materials collected during searching for information must be sorted and irrelevant should be discarded.

A thesis should have a beginning, middle and end.

The Beginning should take the form of introduction or introductory chapter.

This is normally used to state area of research, statement of aims and objectives, literature review, significance of the study etc.

The Middle should contain the various chapters the thesis or dissertation contains and the discussion on such issues.

It is usual for each chapter to address research a research question or one of the objectives of the research.

WRITING A RESEARCH REPORT

Research without writing is of little purpose. Research report is considered a major component of the research task that remains incomplete till the report has been presented and/or written.

This is the means by which researchers communicate with each other, and with other interested parties, across space and time.

The writing of report must be done with great care, keeping in view the following: The layout of the report should be as follows:

- i. the preliminary pages
- ii. the main text, and
- iii. the end matter.

Legal research can be done using sources of different authorities which could be

books, Journals, magazines, judicial decisions, legislations, speeches, letters and interviews.

Legal research has its own specific features in terms of its sources of information and rules of citation.



Reference books, journals, documents, interviews, etc have their own respective rules of citation.

The sources should be cited so that our audience can be convinced that our arguments are supported by appropriate sources or materials, which have direct or indirect relevance to the arguments we may raise.

It is also important to avoid plagiarism and to acknowledge the authors of our reference material. On the basis of our citation, the audience may even want to read the sources we cited.

For these purposes, the researcher has to cite his sources properly adhering to generally accepted rules of citations in legal research.

STRUCTURAL LAYOUT/ORGANISATION OF A RESEARCH REPORT

A research report must necessarily inform the audience about the study so that it can be placed in its general scientific context, judge the adequacy of its methods and thus form an opinion of how seriously the findings are to be taken.

There should be a proper layout of the report. The layout means what the research report should contain.

A comprehensive layout of the research report should comprise:

- i. Preliminary pages;
- ii. The main text; and
- iii. The end matter

In organizational terms, a report or thesis is likely to include, as minimum:

1. An introduction, at the beginning and a set of conclusions, at the end.
These may be supplemented or perhaps replaced by, respectively, a

summary and a series of recommendations.

2. A series of distinct sections or chapters, which may be further divided into sub-sections or sub-chapters. Each section or chapter may have its own introductory and concluding passages.



3. References to existing research and publications, possibly illuminated by selected quotations. A list of the materials referred to will be included, probably at the end of the report or thesis, possibly in the form of a bibliography.
4. Tables, diagrams, charts and other forms of illustrations.
5. A number of prefatory sections, such as a preface, abstract, dedication and acknowledgement; and/or supplementary sections, in the form of appendices.

1. **THE PRELIMINARIES**

In its preliminary pages the report should carry a title and date, followed by acknowledgements in the form of 'Preface' or and 'Foreword.'

Then there should be a table of contents followed by a list of tables and list of graphs and charts/illustrations, if any, given in the report.

The list of tables and list of charts help the decision maker or anybody interested in reading the report to locate easily the required information in the report.

2. **THE MAIN TEXT**

This should have the following parts:

The text provides the complete outline of the research report along with all details.

The title of the research study will be repeated at the top of the first page of the main text and then follows the other details on pages numbered consecutively, beginning with the second page.

The main text of the report should have the following sections:

1. Introduction;
2. Statement of findings and recommendations;

3. The results;
4. The implications drawn from the results; and
5. The Summary/Conclusion.



The text also includes Footnotes or End notes that should be written complying with the research rules of citation.

1. *Introduction*

An introduction is the first passage in a journal article, dissertation, or scholarly research study which sets the stage for the entire study.

The introduction is the part of the paper that provides readers with the background information for the research reported in the paper.

Its purpose is to establish a framework for the research, such that readers can understand how it is related to other research.

It should contain a clear statement of the objective of the research and an explanation of the methodology adopted in accomplishing the research.

The scope of the study along with various limitations should as well be stated in this part.

Setting the stage for a study, the introduction establishes the issue or concern leading to the research by conveying information about a research problem.

Because it is the initial passage in a study or proposal, special care must be given to writing it.

The introduction needs to create reader interest in the topic, establish the problem that leads to the study, place the study within the larger context of the scholarly literature, and reach out to a specific audience.

All of this is achieved in a concise section of a few pages.

2. *Chapters and Sub-headings*

After introduction, the research report must contain chapters and sub-headings or main sections. The chapters and sub-headings, as the case may be, will entertain the

following basic issues:

- A. Statement of findings and recommendations;
- B. Results;
- C. Arguments and criticisms; and



D. Implications of the results.

A. **Statements of Findings, Recommendations and Results**

Statements of findings and recommendations should be presented or written in non-technical language such that it can be easily understood by all concerned.

If the findings happen to be extensive, at this point they should be put in the summarized form.

A detailed presentation of the findings of the study, with supporting data in the form of tables and charts together with a validation of results, is also the next step in writing the main text of the report.

This generally comprises the main body of the report, extending over several chapters.

The result section of the report should contain statically summarized reductions of the data rather than the raw data.

All the results should be presented in a logical sequence and split into readily identifiable sections. All relevant results must find a place in the report.

B. **How to Argue and How to Criticize**

For information on how to argue and present information in the middle chapters see Gasiokwu, M.U., *Legal Research and Methodology* (Jos, Fab Anieh (Nigeria) Limited, 1993) pp. 114-117.

C. **Who am I Writing For**

When you start to write up your research, there are two related issues which you will need to address, whether explicitly or implicitly, early on. These are the issues of voice and style:

1. Style relates to how you write up your research, which may be determined by the requirements of your audience, by your own predilections, or by a

mixture of the two

2. Voice has to do with how you express yourself and tell the story of your research, and is something you are likely to develop further as you write and research
3. Beyond any formal regulations, there is also a general expectation that all writing will strive to be non-discriminatory. To do otherwise would make you likely to offend your readers, at the very least.



D. D. Grammar, Punctuation and Spelling

If you are writing up your research on a word processor or computer, you might want to make use of the facilities which software has for checking your spelling and grammar and for suggesting alternative words to use.

These can be very useful for checking drafts, but remember that they will not recognize many specialist words or names, and, perhaps most importantly, that they will often use American English spelling.

E. What an Academic Thesis or Work Report Looks Like

If you want your research thesis to be interesting as well as academically convincing, you should follow possible forms of organization.

For example, the 'classic' dissertation structure is:

- Contents
- Abstract
- Introduction (10% of words or space)
- Review of the background literature (20%)
- Design and methodology of the research (10%)
- Implementation of the research (10 %)
- Presentation and analysis of data (15%)
- Comment and critique of the outcomes or findings (20%)
- Summary and conclusion (10%)
- References
- Bibliography

➤ Appendices



3. CONCLUSION AND RECOMMENDATIONS

Toward the end of the main text, the researcher should again put down the results of his research clearly and precisely, in summary form.

He should state the implications that flow from the results of the study, for the general reader who is interested in the implications for understanding the human behavior.

Such implications may have the three aspects as stated below:

- i. A statement of the inferences drawn from the present study which may be expected to apply in similar circumstances.
- ii. The conditions of the present study which may limit the extent of legitimate generalizations of the inferences drawn from the study.
- iii. The relevant questions that still remain unanswered or new questions raised by the study along with suggestions for the kind of research that would provide answers for them.

It is considered a good practice to finish the report with a short conclusion which summarizes and recapitulates the main points of the study.

The conclusion drawn from the study should be clearly related to the hypotheses that were stated in the introductory section.

At the same time, a forecast of the probable future of the subject and an indication of the kind of research which needs to be done in that particular area is useful and desirable.

Such indication will be presented in the form of recommendation.

It has become customary to conclude the research report with a brief summary, restating in brief the research problem, the methodology, the major findings and the

major conclusions drawn from the research results.

REFERENCES AND CITATIONS

Citations should contain enough information to indicate clearly to readers what work is referred to, and where it can be obtained.

The rules of citations for our sources of research are provided as follows:



BOOK

To remember the order in which to cite a book, the following formula is useful: SI-

TP-PY-P. S: Surname of the Author

I: Initial of the

Author T: Title of

the Book

P: Name of the

Publishers P: Place of

Publication

Y: Year of

Publication P: Page

Reference

To acknowledge for example Stephen C. Neff for a view borrowed from his book, *War and the Law of Nations*, 2005 at page 12, you can do so as follows:

Neff, S.C. *War and the Law of Nations*. Cambridge University Press, Cambridge, (2005) p.12.

Where there are two authors there is no change in the formula but the names of the co-authors should be provided as follows:

James, R.W. and Kasunmu, A.B. *Alienation of Family Property in Southern Nigeria*. Ibadan University Press, Ibadan, (1966) p.15

Where there are more than two authors, there is no change in the order of presentation but you may either identify all the authors or identify the first author or even the first and second author and use the abbreviation *et al.* to indicate there are

other contributors whom you have not identify by name.

Louis Henkin, Richard C. Pugh, Oscar Schachter and Hans Smit, *International Law (Cases and Materials)*, Second Edition, West Publishing Company, St. Paul, Minnesota (1986) p.25.

This book can be referred to as:

Louis Henkin, Richard C. Pugh, *et al. International Law (Cases and Materials)*, 2nd edition, West publishing Company, St. Paul, Minnesota, (1986) p.25



STATUTES

The formula is cite the section of the statute followed by sub-section in brackets, if any. Then the name of the enactment, Act or Law, this should be followed by the number of the chapter sometimes abbreviated as Cap. and the name of the enactor, e.g. local or national law. Lastly the year when the collection or the enactment was made. For example:

Section 14(2), Judicature Act, Cap. 13, *Laws of Uganda*, 2000.

CASES

Names of the parties, followed by the year the case was reported, the volume if any, the title of the law report containing the case and the page where the case commences in the law report.

Lewis v. Bankole (1908) 1 N.L.R., 82.

JOURNALS

To cite an article published in a journal, write the surname of the author of the article, then follow it with his initials, write the title of the article, follow it with the name of the journal, the year, the volume and the page where the article begins.

Kerr, A.I. "The Reception and Codification of Systems of Law in Southern Africa", *Journal of African Law* (1958) p. 82.

ARTICLES PUBLISHED IN AN EDITED BOOK

Write the surname followed by the initials of the author of the article. Write the title of the article. Write the word "In" followed by the surname of the person who edited the book, the word "ed." in bracket and the name of the publisher, the place of publication, the year and page where the article appeared:

Aboki, Y. "Prescription: Its Applicability under Native Law and Customs Determined". In Ayua,

I.A. (ed.) *Law, Justice and the Nigerian Society*. NIALS, Lagos, (1995) pp. 232-243



NEWSPAPERS

To cite an article in newspapers written by a columnist, write the name of the columnist, followed by the article, the name of the column, the column where the article appeared, the page, the name of the newspaper, the weekday of the publication, the date of publication and the year:

Oloba Ekirin, Excitement in Lagos Bus. Do not Say I Told You, column 3, page 3, *Lagos Weekend*, Friday, December 21, 1969.

If the article is not classified or written by a columnist, write the caption of the news, followed by the word In: the name of the newspaper, day and date of publication, page and year.

Olaba Kei Onyemah, "Aboki Canvasses Reform of the Land Use Act." In *Nassarama This Day*, Page 8, Friday, March 21, 1999.

CONFERENCE PAPERS AND SEMINARS

Write the surname of the writer, his initials, the title of the conference or seminar paper, the conference on which the paper was presented, the venue, the weekday, month, date and year of the conference:

Aboki Y. "The Property Rights of Women under Statutory, Customary and Islamic Laws." A Paper Presented at the Conference Organised by the League of Democratic Women (Leads) of Nigeria, held at the National Library, Bida Road, Kaduna, on Thursday, October 8, 1998 at p.17

UNPUBLISHED THESES, DISSERTATIONS AND PROJECTS

Write the surname of the writer, his initials, the title of the thesis or dissertation, put the word (Unpublished) in brackets, name of the department or faculty where the thesis was written, the name of the institution and the page referred to:

Aboki, Y. Title and Management of Land under Native Law and Custom of the

Peoples of Middle Belt of Nigeria, LL.M Thesis (Unpublished), Faculty of Law,
A.B.U., Zaria, (1985) page 6.

INTERNET SOURCES

Write the surname of the writer, his initials, the title of the article, the year and the
website where it was published followed by the date of access:



Matter, M. Comprehensive Legal Approaches to Combatting Trafficking in Person: An International Comparative Perspectives (2006) www.protectionproject.org accessed 13th February, 2007.

LEGISLATION AND CASE LAW REVIEW

- Introduction
- General Introduction
- Statement of Problem of the Legislation or Case Law
- Aims and Objectives of the Review
- Recommendations and Suggestions
- Conclusion

INTRODUCTION

It is usual for students and lecturers to write commentaries on various legislations or case laws. This is called “Review”.

It is meant to serve a particular purpose, which may be to comment on the problem found with a legislation or case law with a view to proffering suggestions to remedy them.

It may also be to analyse a legislation or case law in order to know whether it has met the purpose for which it was enacted or decided.

Another purpose for reviewing a legislation or case law is where the legislation or the case law is absurd or undesirable or where the result of the application of the law or the holding is contrary to public policy.

A commentary may also be made where the language or letters of legislation or decision is ambiguous, obscure and vague.

Before choosing a legislation or case law, you must have identified some problems associated with it.

The following are the basic things to take into consideration when reviewing a book, case law or legislation.



GENERAL INTRODUCTION

The first step is to give a general introduction of the law or the book being reviewed which may be from historical events concerning the enactment of the law.

This can be obtained from the hansard.

The introductory part should give a vivid account of what a reader expects to read or find in the review.

STATEMENT OF PROBLEM OF THE LEGISLATION OR CASE LAW

It is imperative to state the problem of the law under review. For example that the law is not fulfilling the expectation of the people or the law has some lacunae to fill or an anomaly to remedy.

The statement of problem should as much as possible point out what the problem is. This will direct the reader as to what he will direct his mind to.

AIMS AND OBJECTIVES OF THE REVIEW

Once the problems have been stated clearly, the aims and objectives should be how to remedy the problems.

This should be clearly stated in the general introductory chapter and in particular under the aims and objectives of the project.

Analysis of the Problems

Under this sub-heading, try to identify as many problems as there are with the legislation, book or case law under review.

List problems under separate headings and analyse each.

In analytical discussion, care should be taken to discuss the problem from the legal, political, economic, cultural and social perspectives.

The importance of analytical discussion is to inform the basis of your ultimate decisions, suggestions or remedies.



After a thorough discussion of issues raised, then suggestions or recommendations can be proffered as to what the law ought to be.

RECOMMENDATIONS AND SUGGESTIONS

This is the advice given on what should be done to remedy a particular situation or circumstance. For example, a topic that covers the whole world, the discussion may not be detailed enough.

Whereas a topic that is narrow, say, a small portion of the world, e.g. a region, a country, a district, a local government or a research that covers a particular group of people or peoples the discussion can be expected to be more detailed.

A student once proposed an undergraduate dissertation topic “Land law in Africa”. It was contended that this topic was too wide for an undergraduate dissertation. Even for PhD, its unlikely to be accepted.

Recommendations and suggestions are sometimes used interchangeably but a subtle difference exists.

Recommendations are usually directed at a body for further actions e.g. legislature, courts, a tribunal or any such higher authority.

Suggestions on the other hand may not be directed at anybody in particular. They are strictly the perceived ideas of the writer, which are not directed to anybody but may be used to solve the problem identified.

CONCLUSION

This consist of a summary of the study which should highlights the issues discussed, the recommendations or suggestions given.

Conclusion should not open a new or fresh topic which was not hitherto discussed in the previous chapter.

Under the concluding chapter, you should be able to make a definite statement of your stand or view

